SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER	PAGE	OF
9813-22-1001	1	127

2. CONTRACT NO.	3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			28321322R00000004	08/10/2021

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE/LOCAL TIME
	BRADLEY KARBELING	410-965-9505	08/30/2021 1500 ES

9. ISSUED BY CODE 283213

Social Security Administration
Office of Acquisition and Grants
00000

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR:

☐ SMALL BUSINESS
☐ HUBZONE SMALL BUSINESS
☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
☐ EDWOSB
☒ 8(A)

NAICS: 238220

SIZE STANDARD: $16.5

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS	☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION ☐RFQ ☐IFB ☒RFP

15. DELIVER TO CODE 0024B

Social Security Administration
Wilkes-Barre Direct Operations Ctr.
Room 196A
1150 East Mountain Dr
Wilkes-Barre PA 18702-7997

16. ADMINISTERED BY CODE BKY

Baonhu Ky
410-966-9884

17a. CONTRACTOR/ OFFEROR CODE ____ FACILITY CODE ____

TELEPHONE NO.

18a. PAYMENT WILL BE MADE BY CODE ____

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	The Social Security Administration (SSA) is soliciting proposals for Operations & Maintenance services at the Wilkes-Barre Direct Operations Center (WBDOC), located in Wilkes-Barre, PA. Capable and responsible 8(a) contractors are invited to review the documents herein and provide a proposal by the date identified in Block 8 of this form (see above). The agency will utilize the procedures of Federal *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Govt. Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDEND ☒ ARE ☐ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

☐ 29. AWARD OF CONTRACT: _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		JOE SPECA	

AUTHORIZED FOR LOCAL REPRODUCTION
PREVIOUS EDITION IS NOT USABLE

STANDARD FORM 1449 (REV. 2/2012)
Prescribed by GSA - FAR (48 CFR) 53.212

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Acquisition Regulation 12 and 15 to establish this contract.				
0001	Base Year - A.1 Transition Period Mechanical Services required for WBDOC. The firm requirement for this particular procurement is a contract transition of sixty days from contract award to start date. Firm Fixed Price (FFP) Period of Performance: 12/01/2021 to 01/31/2022	2	MO		
0002	Base Year - A.1.1 Mechanical Services required for WBDOC Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	12	MO		
0003	Base Year- Optional Additional Supplies/Services - Materials, Labor & Subcontracting (see Contract Section A.7): Not-to-Exceed Offerors shall include the maximum amount of $500,000.00 from the pricing table into proposal submissions. Offerors shall also include fully loaded labor rates for the labor categories specified in the pricing tables into proposal submissions. These fully loaded labor rates will be incorporated into the contract and used for task orders placed for additional services. Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

STANDARD FORM 1449 (REV. 2/2012) BACK

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 02/01/2022 to 01/31/2023 Sustaining Maintenance (CLINS 0004-0010, 1003-1009, 2003-2009, 3003-3009, 4003-4009, and 5003-5009) is an "Order for Supplies or Services" requesting work from the Contractor for Government interior alterations, modification, or changes (not required under additional services). (See B.4.3 Sustaining Maintenance Projects in SOW)				
0004	Base Year- Install a new data line from nearest data closet to end user, including all connections and labels. Period of Performance: 02/01/2022 to 01/31/2023	50	EA		
0005	Base Year- Remove existing carpet tiles, prepare the subsurface, and reinstall or install GFM carpet tiles (2'x2') and contractor provided mastic. Including furniture moves. Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	1000	EA		
0006	Base Year- Paint (two coats) drywall roller and brushwork, on walls and trim including repairs, masking, spot spackling, priming, to match existing or building standard. Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	7500	SF		
0007	Base Year- Paint (two coats) metallic surface roller or brushwork, on walls and trim including repairs, masking, spot spackling, priming to match the existing or building standard. Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	500	SF		
0008	Base Year- Paint, stain, or varnish (two coats) interior trim and stair railing. Sand, spackle, and paint or stain interior metal and wood doors. Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	500	LF		

Continued ...

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0009	Base Year- Extend existing receptacle circuit to add one duplex 120V, 20A receptacle. Mounted in wall, under floor, or above ceiling, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per duplex receptacle. Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	25	EA		
0010	Base Year- Install a new 120V, 20A receptacle circuit. Wall mounted, flush or surface, or under raised floor tiles or above ceiling tiles, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per circuit. Firm Fixed Price (FFP) Period of Performance: 02/01/2022 to 01/31/2023	25	EA		
1001	Option Year 1- A.2 Mechanical Services required for WBDOC Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024	12	EA		
1002	Option Year 1- Optional Additional Supplies/Services - Materials, Labor & Subcontracting (see Contract Section A.7): Not-to-Exceed Offerors shall include the maximum amount of $500,000.00 from the pricing table into proposal submissions. Offerors shall also include fully loaded labor rates for the labor categories specified in the pricing tables into proposal submissions. These fully loaded labor rates will be incorporated into the contract and used for task orders placed for additional services. (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024				
1003	Option Year 1- Install a new data line from nearest data closet to end user, including all connections and labels. (Option Line Item) Continued ...	50	EA		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 02/01/2023 to 01/31/2024				
1004	Option Year 1- Remove existing carpet tiles, prepare the subsurface, and reinstall or install GFM carpet tiles (2'x2') and contractor provided mastic. Including furniture moves. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024	1000	EA		
1005	Option Year 1- Paint (two coats) drywall roller and brushwork, on walls and trim including repairs, masking, spot spackling, priming, to match existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024	7500	SF		
1006	Option Year 1- Paint (two coats) metallic surface roller or brushwork, on walls and trim including repairs, masking, spot spackling, priming to match the existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024	500	SF		
1007	Option Year 1- Paint, stain, or varnish (two coats) interior trim and stair railing. Sand, spackle, and paint or stain interior metal and wood doors. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024	500	LF		
1008	Option Year 1- Extend existing receptacle circuit to add one duplex 120V, 20A receptacle. Mounted in wall, under floor, or above ceiling, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per duplex receptacle. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024 Continued ...	25	EA		

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED 28321322R00000004	PAGE 6 OF 127

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1009	Option Year 1- Install a new 120V, 20A receptacle circuit. Wall mounted, flush or surface, or under raised floor tiles or above ceiling tiles, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per circuit. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2023 to 01/31/2024	25	EA		
2001	Option Year 2- A.3 Mechanical Services required for WBDOC Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025	12	EA		
2002	Option Year 2- Optional Additional Supplies/Services - Materials, Labor & Subcontracting (see Contract Section A.7): Not-to-Exceed Offerors shall include the maximum amount of $500,000.00 from the pricing table into proposal submissions. Offerors shall also include fully loaded labor rates for the labor categories specified in the pricing tables into proposal submissions. These fully loaded labor rates will be incorporated into the contract and used for task orders placed for additional services. (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025				
2003	Option Year 2- Install a new data line from nearest data closet to end user, including all connections and labels. (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025	50	EA		
2004	Option Year 2- Remove existing carpet tiles, prepare the subsurface, and reinstall or install GFM carpet tiles (2'x2') and contractor provided mastic. Including furniture moves. Firm Fixed Price (FFP) (Option Line Item) Continued ...	1000	EA		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 02/01/2024 to 01/31/2025				
2005	Option Year 2- Paint (two coats) drywall roller and brushwork, on walls and trim including repairs, masking, spot spackling, priming, to match existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025	7500	SF		
2006	Option Year 2- Paint (two coats) metallic surface roller or brushwork, on walls and trim including repairs, masking, spot spackling, priming to match the existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025	500	SF		
2007	Option Year 2- Paint, stain, or varnish (two coats) interior trim and stair railing. Sand, spackle, and paint or stain interior metal and wood doors. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025	500	LF		
2008	Option Year 2- Extend existing receptacle circuit to add one duplex 120V, 20A receptacle. Mounted in wall, under floor, or above ceiling, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per duplex receptacle. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2024 to 01/31/2025	25	EA		
2009	Option Year 2- Install a new 120V, 20A receptacle circuit. Wall mounted, flush or surface, or under raised floor tiles or above ceiling tiles, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per circuit. Firm Fixed Price (FFP) (Option Line Item) Continued ...	25	EA		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 02/01/2024 to 01/31/2025				
3001	Option Year 3- A.4 Mechanical Services required for WBDOC Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	12	EA		
3002	Option Year 3- Optional Additional Supplies/Services - Materials, Labor & Subcontracting (see Contract Section A.7): Not-to-Exceed Offerors shall include the maximum amount of $500,000.00 from the pricing table into proposal submissions. Offerors shall also include fully loaded labor rates for the labor categories specified in the pricing tables into proposal submissions. These fully loaded labor rates will be incorporated into the contract and used for task orders placed for additional services. (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026				
3003	Option Year 3- Install a new data line from nearest data closet to end user, including all connections and labels. (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	50	EA		
3004	Option Year 3- Remove existing carpet tiles, prepare the subsurface, and reinstall or install GFM carpet tiles (2'x2') and contractor provided mastic. Including furniture moves. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	1000	EA		
3005	Option Year 3- Paint (two coats) drywall roller and brushwork, on walls and trim including repairs, masking, spot spackling, priming, to match existing or building standard. Firm Fixed Price (FFP) Continued ...	7500	SF		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	(Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026				
3006	Option Year 3- Paint (two coats) metallic surface roller or brushwork, on walls and trim including repairs, masking, spot spackling, priming to match the existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	500	SF		
3007	Option Year 3- Paint, stain, or varnish (two coats) interior trim and stair railing. Sand, spackle, and paint or stain interior metal and wood doors. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	500	LF		
3008	Option Year 3- Extend existing receptacle circuit to add one duplex 120V, 20A receptacle. Mounted in wall, under floor, or above ceiling, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per duplex receptacle. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	25	EA		
3009	Option Year 3- Install a new 120V, 20A receptacle circuit. Wall mounted, flush or surface, or under raised floor tiles or above ceiling tiles, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per circuit. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2025 to 01/31/2026	25	EA		
4001	Option Year 4- A.5 Mechanical Services required for WBDOC Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027 Continued ...	12	EA		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
4002	Option Year 4- Optional Additional Supplies/Services - Materials, Labor & Subcontracting (see Contract Section A.7): Not-to-Exceed Offerors shall include the maximum amount of $500,000.00 from the pricing table into proposal submissions. Offerors shall also include fully loaded labor rates for the labor categories specified in the pricing tables into proposal submissions. These fully loaded labor rates will be incorporated into the contract and used for task orders placed for additional services. (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027				
4003	Option Year 4- Install a new data line from nearest data closet to end user, including all connections and labels. (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027	50	EA		
4004	Option Year 4- Remove existing carpet tiles, prepare the subsurface, and reinstall or install GFM carpet tiles (2'x2') and contractor provided mastic. Including furniture moves. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027	1000	EA		
4005	Option Year 4- Paint (two coats) drywall roller and brushwork, on walls and trim including repairs, masking, spot spackling, priming, to match existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027	7500	SF		
4006	Option Year 4- Paint (two coats) metallic surface roller or brushwork, on walls and trim including repairs, masking, spot spackling, priming to match the existing or building standard. Firm Continued ...	500	SF		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027				
4007	Option Year 4- Paint, stain, or varnish (two coats) interior trim and stair railing. Sand, spackle, and paint or stain interior metal and wood doors. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027	500	LF		
4008	Option Year 4- Extend existing receptacle circuit to add one duplex 120V, 20A receptacle. Mounted in wall, under floor, or above ceiling, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per duplex receptacle. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027	25	EA		
4009	Option Year 4- Install a new 120V, 20A receptacle circuit. Wall mounted, flush or surface, or under raised floor tiles or above ceiling tiles, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per circuit. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2026 to 01/31/2027	25	EA		
5001	Option to Extend Services Up to 6 Months- A.6 Mechanical Services required for WBDOC Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	6	EA		
5002	Option to Extend Services Up to 6 Months- Optional Additional Supplies/Services - Materials, Labor & Subcontracting (see Contract Section A.7): Not-to-Exceed Offerors shall include the maximum amount of Continued ...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	$250,000.00 from the pricing table into proposal submissions. Offerors shall also include fully loaded labor rates for the labor categories specified in the pricing tables into proposal submissions. These fully loaded labor rates will be incorporated into the contract and used for task orders placed for additional services. (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027				
5003	Option to Extend Services Up to 6 Months- Install a new data line from nearest data closet to end user, including all connections and labels. (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	25	EA		
5004	Option to Extend Services Up to 6 Months- Remove existing carpet tiles, prepare the subsurface, and reinstall or install GFM carpet tiles (2'x2') and contractor provided mastic. Including furniture moves. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	500	EA		
5005	Option to Extend Services Up to 6 Months- Paint (two coats) drywall roller and brushwork, on walls and trim including repairs, masking, spot spackling, priming, to match existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	3750	SF		
5006	Option to Extend Services Up to 6 Months- Paint (two coats) metallic surface roller or brushwork, on walls and trim including repairs, masking, spot spackling, priming to match the existing or building standard. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	250	SF		
5007	Option to Extend Services Up to 6 Months- Paint, stain, or varnish (two coats) interior trim and Continued ...	250	LF		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	stair railing. Sand, spackle, and paint or stain interior metal and wood doors. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027				
5008	Option to Extend Services Up to 6 Months- Extend existing receptacle circuit to add one duplex 120V, 20A receptacle. Mounted in wall, under floor, or above ceiling, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per duplex receptacle. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	13	EA		
5009	Option to Extend Services Up to 6 Months- Install a new 120V, 20A receptacle circuit. Wall mounted, flush or surface, or under raised floor tiles or above ceiling tiles, in accordance with National Electric Code. Devices and covers will match existing building standard. Price per circuit. Firm Fixed Price (FFP) (Option Line Item) Period of Performance: 02/01/2027 to 07/31/2027	13	EA		

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Addendum to Standard Form (SF) 1449

In accordance with Federal Acquisition Regulation (FAR) 12.302 and 12.303, this addendum to the Standard Form (SF) 1449 provides for continuation of the schedule and a description of the supplies/services to be acquired.

SECTION A - Pricing Table

The Contractor shall furnish all necessary management, supervision, labor, materials, supplies, and equipment, except as may be otherwise specified herein, and shall plan, schedule, coordinate, and assure effective performance of all services described herein. The Contractor shall be required to provide Operations and Maintenance services at the Social Security Administration (SSA), Wilkes-Barre Direct Operations Center (WBDOC), located at 1150 East Mountain Drive, Wilkes-Barre, PA 18702 in accordance with Appendix D-22 Statement of Work as well as all other applicable appendixes in Section D.

A.1 TRANSITION PERIOD: 12/01/2021-01/31/2022

The firm requirement for this particular requirement is a contract transition of sixty (60) days from contract award to contract start date

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
0001	2	Months	$	$

A.1.1 BASE YEAR: 02/01/2022-01/31/2023

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
0002	12	Months	$	$

A.2 OPTION YEAR I *(If Exercised)*: 02/01/2023-01/31/2024

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
1001	12	Months	$	$

A.3 OPTION YEAR II *(If Exercised)*: 02/01/2024-01/31/2025

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
2001	12	Months	$	$

A.4 OPTION YEAR III *(If Exercised)*: 02/01/2025-01/31/2026

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
3001	12	Months	$	$

A.5 OPTION YEAR IV *(If Exercised)*: 02/01/2026-01/31/2027

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
4001	12	Months	$	$

A.6 OPTION TO EXTEND SERVICES *(If Exercised)*: 02/01/2027-07/31/2027

This option line item may be used to extend services as stated under this line item and in accordance with contract clause C2-8 52.217-8, Option to Extend Services (NOV 1999). SSA, however, reserves the right to exercise this option within any time during the contract performance period in accordance with contract clause C2-8. Should SSA exercise this option for a period other than the period stated under A.6 (above) and A.7(A)(6) below, the Contractor shall continue performance within the limits and at the rates specified under the preceding performance period. SSA may adjust these rates only as a result of revisions to the prevailing labor rates provided by the Secretary of Labor.

CLIN	QTY	UNIT	UNIT PRICE	EXTENDED PRICE
5001	6	Months	$	$

A.7 OPTIONAL ADDITIONAL SERVICES HOURS AND PRICES (See Section C4-7)

The total annual guaranteed minimum and maximum for optional additional services (material, labor, and subcontracting) is $0.00 and $2,750,000.00 respectively.

(A) Additional Services Requirements (Material, Labor, and Subcontracting)

CLIN	MINIMUM AMOUNT	MAXIMUM AMOUNT
0003 – (1) Base Year	$0.00	$500,000.00
1002 – (2) Option Year I	$0.00	$500,000.00

2002 – (3) Option Year II	$0.00	$500,000.00
3002 – (4) Option Year III	$0.00	$500,000.00
4002– (5) Option Year IV	$0.00	$500,000.00
5002 – (6) Option to Extend Services	$0.00	$250,000.00

For evaluation purposes, all Offerors shall incorporate the maximum amounts listed above into proposal submissions.

Materials:

Materials Mark-Up Rate	**%**

Offerors shall also specify the material mark-up rate, which will be incorporated into the contract.

Labor and Subcontracting:

Subcontractor Mark-Up Rate	**%**

For evaluation purposes, all Offerors shall incorporate the maximum amounts listed above into proposal submissions. Offerors shall also 1) specify the subcontractor mark-up rate, which will be incorporated into the contract, and 2) provide fully loaded labor rates for each specified labor category in the tables below. These labor categories, along with the proposed fully loaded labor rates, shall be incorporated into the contract award as separate orderable CLINs (total orders not to exceed the overall specified maximum amount).

HVAC Technicians	Fully Loaded Labor Rate
(1) Base Year	
(2) Option Year I	
(3) Option Year II	
(4) Option Year III	
(5) Option Year IV	
(6) Option to Extend Services	

Electrician	Fully Loaded Labor Rate
(1) Base Year	
(2) Option Year I	
(3) Option Year II	
(4) Option Year III	
(5) Option Year IV	
(6) Option to Extend Services	

Administrative Assistant/ Work Controller	Fully Loaded Labor Rate
(1) Base Year	
(2) Option Year I	
(3) Option Year II	
(4) Option Year III	
(5) Option Year IV	
(6) Option to Extend Services	

These labor categories are subject to Service Contract Labor Standards; some labor categories have Collective Bargaining Agreements in effect.

A.8 Optional Sustaining Maintenance Line Item Quantities & Prices (See Appendix 11)

Sustaining Maintenance is an "Order for Supplies or Services" requesting work from the Contractor for Government interior alterations, modification, or changes (not required under additional services). (See B.4.3 Sustaining Maintenance Projects in SOW)

SECTION B – Statement of Work

See Appendix 22.

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SECTION C - Contract Clauses and Terms and Conditions

SECTION C1 - FAR Clauses Incorporated by Reference (IBR)

C1-1 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): http://www.acquisition.gov.

(End of clause)

C1-2 52.202-1 Definitions (JUN 2020)

C1-3 52.203-3 Gratuities (APR 1984)

C1-4 52.204-9 Personal Identity Verification of Contractor Personnel. (JAN 2011)

C1-5 52.204-13 System for Award Management Maintenance. (OCT 2018)

C1-6 52.237-2 Protection of Government Buildings, Equipment, and Vegetation. (APR 1984)

C1-7 52.237-3 Continuity of Services (JAN 1991)

SECTION C2 - Federal Acquisition Regulation (FAR) Full Text Clauses

C2-1 52.204-18 Commercial and Government Entity Code Maintenance. (AUG 2020)

(a) *Definition.* As used in this clause-

Commercial and Government Entity (CAGE) code means-

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) Contractors shall ensure that the CAGE code is maintained throughout the life of the contract for each location of contract, including subcontract, performance. For Contractors registered in the System for Award Management (SAM), the DLA Commercial and Government Entity (CAGE) Branch shall only modify data received from SAM in the CAGE master file if the Contractor initiates those changes via update of its SAM registration. Contractors undergoing a novation or change-of-name agreement shall notify the contracting officer in accordance with subpart 42.12. The Contractor shall communicate any change to the CAGE code to the contracting officer within 30 days after the change, so that a modification can be issued to update the CAGE code on the contract.

(c) Contractors located in the United States or its outlying areas that are not registered in SAM shall submit written change requests to the DLA Commercial and Government Entity (CAGE) Branch. Requests for changes shall be provided at *https://cage.dla.mil*. Change requests to the CAGE master file are accepted from the entity identified by the code.

(d) Contractors located outside the United States and its outlying areas that are not registered in SAM shall contact the appropriate National Codification Bureau (points of contact available at *http://www.nato.int/structur/AC/135/main/links/contacts.htm*) or NSPA at *https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx* to request CAGE changes.

(e) Additional guidance for maintaining CAGE codes is available at *https://cage.dla.mil*.

(f) If the contract includes Federal Acquisition Regulation clause 52.204-2, Security Requirements, the Contractor shall ensure that subcontractors maintain their CAGE code(s) throughout the life of the contract.

(End of clause)

C2-2 52.212-4 Contract Terms and Conditions—Commercial Items (DEVIATION 2017-02) (OCT 2018)

(a) Inspection/Acceptance – **see C2-2.1 ADDENDUM to FAR 52.212-4 Contract Terms and Conditions – Commercial Items (DEVIATION 2017-02) (OCT 2018)**

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at FAR 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice.

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include—

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer—System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer—Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.—

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) Electronic Funds Transfer (EFT). If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109 , which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in 32.608-2 of the Federal Acquisition Regulation in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law.

If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Other compliances. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 10 U.S.C. 2409 relating to whistleblower protections; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

C2-2.1 ADDENDUM to FAR 52.212-4 Contract Terms and Conditions – Commercial Items (DEVIATION 2017-02) (OCT 2018)

REVISIONS TO PARAGRAPHS IN 52.212-4

- Paragraph (a), Inspection/Acceptance, is hereby deleted in its entirety and replaced by/with FAR Clause 52.246-4, Inspection of Services (Fixed Price) (AUG 1996)
- Paragraph (g), Invoice, is supplemented by Section C3-9 2352.232-1

C2-3 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders - Commercial Items (JUL 2021) (DEVIATIONS 2017-02, 2019-01, and 2020-05) (SEP 2020)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(6) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items: (Contracting Officer check as appropriate.)

[X] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUNE 2020), with Alternate I (OCT 1995) (41 U.S.C. 4704 and 10 U.S.C. 2402).

[X] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[X] (4) 52.203-17, Contractor Employee Whistleblower Rights and Requirement To Inform Employees of Whistleblower Rights (JUN 2020) (41 U.S.C. 4712) relating to whistleblower protections).

[X] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

(6) (Reserved)

[X] (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

[] (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

[X] (9) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (JUN 2020) (31 U.S.C. 6101 note).

[X] (10) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

[] (11) (Reserved)

[] (12)(i) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (MAR 2020) (15 U.S.C. 657a). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[] (ii) Alternate I (MAR 2020) of 52.219-3.

[] (13)(i) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (MAR 2020) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[] (ii) Alternate I (MAR 2020) of 52.219-4.

[] (14) (Reserved)

[X] (15)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-6.

[] (16)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-7.

[X] (17) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and(3)).

[] (18)(i) 52.219-9, Small Business Subcontracting Plan (JUN 2020) (15 U.S.C. 637(d)(4)).

[] (ii) Alternate I (NOV 2016) of 52.219-9.

[] (iii) Alternate II (NOV 2016) of 52.219-9.

[] (iv) Alternate III (JUN 2020) of 52.219-9.

[] (v) Alternate IV (JUN 2020) of 52.219-9.

[] (19)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

[] (ii) Alternate I (MAR 2020) of 52.219-13.

[X] (20) 52.219-14, Limitations on Subcontracting (MAR 2020) (15 U.S.C. 637(a)(14)). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[] (21) 52.219-16, Liquidated Damages-Subcontracting Plan (JAN 1999) (15 U.S.C. 637(d)(4)(F)(i)).

[] (22) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (MAR 2020) (15 U.S.C. 657f). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[X] (23)(i) 52.219-28, Post Award Small Business Program Rerepresentation (MAY 2020) (15 U.S.C. 632(a)(2)).

[] (ii) Alternate I (MAR 2020) of 52.219-28.

[] (24) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business (EDWOSB) Concerns (MAR 2020) (15 U.S.C. 637(m)). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[] (25) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (MAR 2020) (15 U.S.C. 637(m)). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[] (26) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

[] (27) 52.219-33, Nonmanufacturer Rule (MAR 2020) (15 U.S.C. 637(a)(17)). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2019-01)" in this document.

[X] (28) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

[] (29) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2020) (E.O. 13126). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with "(DEVIATION 2020-05)" in this document.

[X] (30) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

[X] (31)(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

[] (ii) Alternate I (FEB 1999) of 52.222-26.

[X] (32) (i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

[] (ii) Alternate I (July 2014) of 52.222-35.

[X] (33) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

[] (ii) Alternate I (July 2014) of 52.222-36.

[X] (34) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

[X] (35) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

[X] (36)(i) 52.222-50, Combating Trafficking in Persons (OCT 2020) (22 U.S.C. chapter 78 and E.O. 13627).

[] (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

[X] (37) 52.222-54, Employment Eligibility Verification (OCT 2015). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)

[] (38)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[] (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

[X](39) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (JUN 2016) (E.O. 13693).

[X](40) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).

[] (41)(i) 52.223-13, Acquisition of EPEAT®-Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).

[] (ii) Alternate I (OCT 2015) of 52.223-13.

[] (42)(i) 52.223-14, Acquisition of EPEAT®-Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).

(ii) Alternate I (JUN 2014) of 52.223-14.

[] (43) 52.223-15, Energy Efficiency in Energy-Consuming Products (MAY 2020) (42 U.S.C. 8259b).

[] (44)(i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).

[](ii) Alternate I (JUN 2014) of 52.223-16.

[X] (45) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020)

[] (46) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).

[] (47) 52.223-21, Foams (JUN 2016) (E.O. 13693).

[] (48)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

[] (ii) Alternate I (JAN 2017) of 52.224-3.

[] (49) 52.225-1, Buy American-Supplies (JAN 2021) (41 U.S.C. chapter 83).

[] (50)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (JAN 2021) (41 U.S.C. chapter 83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43. AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with “(DEVIATION 2020-05)” in this document. In reference to this deviation, the above list of citations is hereby updated by deleting, “41 U.S.C. chapter 83,” and inserting (after “19 U.S.C. 4001 note”) “19 U.S.C. chapter 29 (sections 4501-4732”),”.

[] (ii) Alternate I (JAN 2021) of 52.225-3.

AGENCY DEVIATION: The agency has deviated from the FAR by deleting this alternate and relabeling it as “[Reserved].”

[] (iii) Alternate II (JAN 2021) of 52.225-3.

AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with “(DEVIATION 2020-05)” in this document.

[] (iv) Alternate III (JAN 2021) of 52.225-3.

[] (51) 52.225-5, Trade Agreements (OCT 2019) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note). AGENCY DEVIATION: An agency deviation to this clause supersedes this version. If this clause is marked for inclusion here, see agency deviation version labeled with “(DEVIATION 2020-05)” in this document.

[X] (52) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

[] (53) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

[] (54) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

[] (55) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

[X] (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

[] (57) 52.232-29, Terms for Financing of Purchases of Commercial Items (FEB 2002) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

[] (58) 52.232-30, Installment Payments for Commercial Items (JAN 2017) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

[X] (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT 2018) (31 U.S.C. 3332).

[] (60) 52.232-34, Payment by Electronic Funds Transfer - Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

[] (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

[] (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

[] (63) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

[] (64)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) (46 U.S.C. 55305 and 10 U.S.C. 2631).

[] (ii) Alternate I (APR 2003) of 52.247-64.

[] (iii) Alternate II (Feb 2006) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items: (Contracting Officer check as appropriate.)

[X] (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

[X] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[X] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

[] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

[] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (MAY 2014) (41 U.S.C. chapter 67).

[] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

[X] (7) 52.222-55, Minimum Wages Under Executive Order 13658 (NOV 2020).

[X] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records - Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) of this paragraph in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds $700,000 ($1.5 million for construction of any public facility), the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(vi) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(vii) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xiii) [] (A) 52.222-50, Combating Trafficking in Persons (JAN 2019) (22 U.S.C. chapter 78 and E.O. 13627).

[] (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xvi) 52.222-54, Employment Eligibility Verification (OCT 2015) (E. O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (NOV 2020).

(xviii) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

(xix)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

C2-3.1 Fill-in for 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS – COMMERCIAL ITEMS (MAR 2016)

The minimum wages and benefits for the applicable labor categories are mandated by the Department of Labor Wage Determinations provided at Appendix D-21.

The following wage information is provided for informational purposes only as a fill-in to FAR 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 1989), included by reference in Section C2-3:

Employee Class	Number of Employees	Equivalent Grade	Monetary Wage (Per Hour)

Maintenance Electrician	TBD	WG-10	$22.33
HVAC Mechanic	TBD	WG-10	$22.33

Fringe Benefits:

(a) Contribution of a percentage of basic hourly rate for health insurance.

(b) Contribution of a percentage of basic hourly rate for retirement.

(c) Ten paid holidays as follows: New Year's Day; Washington's Birthday; Memorial Day; Independence Day; Labor Day; Columbus Day; Veteran's Day; Thanksgiving Day; Christmas Day; Martin Luther King's Birthday

(d) Paid annual leave (vacation as follows:)

(1) Two hours of annual leave each week for an employee with less than three years of service.

(2) Three hours of annual leave each week for an employee with three but less than fifteen years of service.

(3) Four hours of annual leave each week for an employee with fifteen or more years of service.

(e) Two hours of paid sick leave each week for all employees regardless of years of service.

Sections C2-4 through C2-7 are applicable to the optional additional services line items only.

C2-4 52.212-4 Contract Terms and Conditions - Commercial Items. (OCT 2018) - Alternate I (JAN 2017)

Applicable to ordering optional additional services only, and when the order is issued as a labor hour task order.

(a) Inspection/Acceptance. (1) The Government has the right to inspect and test all materials furnished and services performed under this contract, to the extent practicable at all places and times, including the period of performance, and in any event before acceptance. The Government may also inspect the plant or plants of the Contractor or any subcontractor engaged in contract performance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (a)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken.

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (a)(4) and (5) above, the Government may at any time require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at FAR 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. (1) The clause at FAR 52.202-1, Definitions, is incorporated herein by reference. As used in this clause-

(i) Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.
(ii) Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

(A) Performed by the Contractor;

(B) Performed by the subcontractors; or

(C) Transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control.

(iii) Materials means-

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);

(D) The following subcontracts for services which are specifically excluded from the hourly rate: **N/A**

(E) Indirect costs specifically provided for in this clause.

(iv) Subcontract means any contract, as defined in FAR Subpart 2.1, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a Contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice. (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR part 1315.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payments. (1) Work performed. The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) Hourly rate.

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) Materials.

(A) If the Contractor furnishes materials that meet the definition of a commercial item at 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the Contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Other Costs. Unless listed below, other direct and indirect costs will not be reimbursed.

(1) Other Direct Costs. The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: **None**

(2) Indirect Costs (Material Handling, Subcontract Administration, etc.). The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: **None**

(2) Total cost. It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(3) Ceiling price. The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) Access to records. At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) Overpayments/Underpayments. Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government within 30 days will pay any such increases, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-
(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6)(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as

provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final Decisions. The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-
(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in 32.608-2 of the Federal Acquisition Regulation in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree

otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) Release of claims. The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions.

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) Electronic Funds Transfer (EFT). If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(10) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i) Payments of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (a)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.
(o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Other compliances. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 41 U.S.C. 4712

and 10 U.S.C. 2409 relating to whistleblower protections; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order: (1) the schedule of supplies/services; (2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause; (3) the clause at 52.212-5; (4) addenda to this solicitation or contract, including any license agreements for computer software; (5) solicitation provisions if this is a solicitation; (6) other paragraphs of this clause; (7) the Standard Form 1449; (8) other documents, exhibits, and attachments; and (9) the specification.

(t) Removed and reserved.

(u) Unauthorized Obligations. (1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.
(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

C2-5 52.216-18 Ordering. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such

orders may be issued during the 12-month base period of performance and during any subsequent option period if exercised.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

C2-6 52.216-19 Order Limitations. (OCT 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than $200.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of $50,000.00;

(2) Any order for a combination of items in excess of $100,000.00; or

(3) A series of orders from the same ordering office within five days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) above.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within five days after issuance, with written notice stating the

Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

C2-7 52.216-22 Indefinite Quantity. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the *maximum.* The Government shall order at least the quantity of supplies or services designated in the Schedule as the *minimum.*

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after July 24, 2027.

(End of clause)

C2-8 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days prior to the contract expiration date.

(End of clause)

C2-9 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor at any time during the contract performance period; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

(End of clause)

C2-10 52.228-5 Insurance - Work on a Government Installation. (JAN 1997)

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the schedule or elsewhere in the contract.

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective (1) for such period as the laws of the State in which this contract is to be performed prescribe, or (2) until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of clause)

C2-11 52.232-18 Availability of Funds (APR 1984)

Funds are not presently available for this contract. The Government’s obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

C2-12 52.232-40 Providing Accelerated Payments to Small Business Subcontractors. (DEC 2013)

(a) Upon receipt of accelerated payments from the Government, the Contractor shall make accelerated payments to its small business subcontractors under this contract, to the maximum extent practicable and prior to when such payment is otherwise required under the applicable

contract or subcontract, after receipt of a proper invoice and all other required documentation from the small business subcontractor.

(b) The acceleration of payments under this clause does not provide any new rights under the Prompt Payment Act.

(c) Include the substance of this clause, including this paragraph (c), in all subcontracts with small business concerns, including subcontracts with small business concerns for the acquisition of commercial items.

(End of clause)

SECTION C3 - Agency Specific Clauses

C3-1 0002 Agency Specific Clauses

This contract includes one or more Social Security Administration acquisition clauses which are provided in full text.

C3-2 2352.204-1 Security and Suitability Requirements (MAR 2018)

(a) Acronyms and Definitions – As used in this clause –

“Access to a facility, site, system, or information” means physical access to any Social Security Administration (SSA) facility or site, logical access to any SSA information system, or access to programmatic or sensitive information.

“CO” means contracting officer.

“Contractor” means any entity having a relationship with SSA because of this contract. This term includes, but is not limited to, corporations, limited liability partnerships, and sole proprietorships.

“Contractor personnel” means employees of the Contractor, employees of the subcontractor, any consultant retained by the Contractor or subcontractor, any volunteer or intern of the Contractor or subcontractor, and if the Contractor or subcontractor is a sole proprietorship, it refers to the sole proprietorship.

“COR-COTR” means contracting officer’s representative-contracting officer’s technical representative.

“CPOC” means company point of contact as specified by the contract.

“CSPS” means Center for Suitability and Personnel Security.

“e-QIP” means Electronic Questionnaire for Investigations Processing.

“PIV” means Personal Identity Verification.

“SubContractor” means any entity having a relationship with SSA’s Contractor because of this contract. This term includes, but is not limited to, corporations, limited liability partnerships, and sole proprietorships.

(b) Purpose. This clause provides SSA’s policies and procedures concerning the conduct of background investigations (i.e. suitability determinations) of Contractor personnel. A background investigation is required any time Contractor personnel requires any type of access to a facility, site, system, or information, whether or not a PIV credential is required. Contractor personnel may be subject to periodic reinvestigation per SSA policy. The purpose of these investigations is to determine the suitability of Contractor personnel needing access to a SSA facility, site, system, or information. If applicable, the clause also describes the process to obtain a PIV credential.

(c) PIV Credentials

(1) A PIV credential is required for Contractor personnel requiring access to a SSA information system or routine, unescorted access to a SSA facility or site for a period of six months or more. (See paragraph (k) for more information.)

(2) A PIV credential is not required for:

(i) Contractor personnel requiring escorted access to a SSA facility or site for less than six months; or

(ii) Contractor personnel requiring infrequent escorted access to a SSA facility or site, even if the access may be longer than six months (e.g., Contractor personnel who provide infrequent facilities or equipment maintenance or repair, or who conduct onsite shredding, etc.).

(d) Authorities

(1) Homeland Security Presidential Directive 12

(http://www.dhs.gov/homeland-security-presidential-directive-12).

(2) Office of Management and Budget Memorandum M-05-24

(https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/omb/memoranda/fy2005/m05-24.pdf).

(3) The Crime Control Act of 1990, Public Law 101-647, subtitle E, as amended by Public Law 102-190 (for childcare center security requirements)

(http://www.gpo.gov/fdsys/pkg/USCODE-2010-title42/pdf/USCODE-2010-title42-chap132-subchapV-sec13041.pdf).

(4) Executive Orders 13764 and 12968

(https://www.hsdl.org/?abstract&did=798174) and

https://www.gpo.gov/fdsys/pkg/FR-1995-08-07/pdf/95-19654.pdf)

(5) Title 5, Code of Federal Regulations (CFR), Parts 731, 736, and 1400 (for positions assigned a "National Security" designation)

(http://www.ecfr.gov/cgi-bin/text-idx?c=ecfr&tpl=/ecfrbrowse/Title05/5cfr731_main_02.tpl, http://www.ecfr.gov/cgi-bin/text-idx?c=ecfr&tpl=/ecfrbrowse/Title05/5cfr736_main_02.tpl, and

http://www.ecfr.gov/cgi-bin/text-idx?SID=ea8d9b7f129b58c4b512ea9d68a44761&mc=true&node=pt5.3.1400&rgn=div5%23se5.3.1400_1201)

(e) Suitability Process. The background investigation and adjudication processes are compliant with 5 CFR 731 or equivalent. Any new Contractor personnel (i.e. those who have not previously received a suitability determination under this contract) requiring access to a SSA facility, site, information, or system, must complete and submit, through the COR-COTR, the documents listed in (e)(1) at least 30 business days prior to the date Contractor personnel are to begin work. The suitability process cannot begin until the Contractor submits, and SSA receives, accurate and complete documents.

(1) Suitability Document Submission

a. Immediately upon award, the CPOC must provide to the COR-COTR for all Contractor personnel requesting a suitability determination:

(i) An e-QIP Applicant Listing including the names of all Contractor personnel requesting suitability;

(ii) Completed Optional Form (OF) 306, Declaration for Federal Employment;

(iii) Fair Credit Reporting Act Authorizations (FCRA); and

(iv) Work authorization for non-United States (U.S.) born applicants, if applicable.

b. The e-QIP Applicant Listing must include the Contractor's name, the contract number, the CPOC's name, the CPOC's contact information, the COR-COTR's name, the COR-COTR's contact information, and the full name, Social Security Number, date of birth, place of birth (must show city and state if born in the U.S. OR city and country if born outside of the U.S.), and a valid email address for all Contractor personnel requesting suitability. All spelling of names, email addresses, places, and numbers must be accurate and legible.

c. The required suitability forms, and a sample of properly completed forms, are available on SSA's Office of Acquisition and Grants (OAG) website ("Information About Acquisitions" tab, "Security Information" section [https://www.ssa.gov/oag/acq/ASC_2352_204-1_Security_and_Suit_Reqrmts_Post_10012017/Links%20for%20Agency%20Specific%20Clause%202352_204-1%20Post%2010012017.htm]).

(2) e-QIP Application

a. Once SSA receives all completed documents, listed in (e)(1), CSPS will initiate the e-QIP process using the e-QIP Applicant Llisting. CSPS will email the e-QIP notification to the CPOC and COR-COTR inviting Contractor personnel to the e-QIP website to electronically complete the background investigation form (Standard Form (SF) 85, Questionnaire for Non-Sensitive Positions, or SF 86, Questionnaire for National Security Positions).

b. Contractor personnel will have up to 10 business days to complete the e-QIP application. The 10-day timeframe begins the day CSPS sends the invitation to the CPOC and COR-COTR. Contractor personnel must electronically sign the signature pages before releasing the application in e-QIP. Signature pages include the Certification and Release pages for SF 85 and the Certification, Release, and Medical Release pages for both the SF 85P and SF 86.

c. Find information about the e-QIP process in the e-QIP Quick Reference Guide for e-QIP Applicants at https://nbib.opm.gov/e-qip-background-investigations/.

d. If Contractor personnel need assistance with e-QIP logon and navigation, call 1-844-874-9940.

(3) Fingerprinting

a. The e-QIP notification email also provides Contractor personnel with instructions to obtain electronic fingerprinting services. Contractor personnel must report for fingerprint services immediately upon completion and release of the e-QIP application and within 10 business days from the day CSPS sends the invitation.

b. If Contractor personnel cannot report to the designated fingerprint locations (in the notification email), CSPS will accept completed Field Division (FD) 258 fingerprint cards. The CO can provide the FD 258, if required. Contractor personnel must complete all fields on the FD 258. Incomplete fields may delay suitability processing.

c. If you need to mail completed FD 258 fingerprint cards, send them, via certified mail along with a completed Contractor Personnel Suitability Cover Sheet-Fingerprint Cards (found on the OAG website), to:

Social Security Administration

Center for Suitability and Personnel Security

Attn: Suitability Program Officer

6401 Security Boulevard

2246 Annex Building

Baltimore, MD 21235

(4) Status Check. If Contractor personnel have completed each of the steps in (e) in their entirety and do not receive a suitability determination within 15 business days of their last submission, call 1-844-874-9940 to determine suitability status.

(f) Suitability Determination

(1) CSPS uses a Federal Bureau of Investigation fingerprint check as part of the basis for making a suitability determination. This determination is final unless information obtained during the remainder of the full background investigation, conducted by the Office of Personnel Management, is such that SSA would find the Contractor personnel unsuitable to continue performing under this contract. CSPS will notify the CPOC and the COR-COTR of the results of these determinations.

(2) SSA will not allow Contractor personnel access to a facility, site, information, or system until CSPS issues a favorable suitability determination. A suitability determination letter issued by CSPS is valid only for performance on the contract specified in the letter.

(3) If current Contractor personnel are to perform work under a new contract, the CPOC must submit a fully completed, legible Contractor Personnel Rollover Request Form to the COR-COTR of the new contract. CSPS will notify the CPOC and the COR-COTR CO of suitability to work on the new contract. The Contractor Personnel Rollover Request Form is on OAG's website.

(g) Contractor Personnel Previously Cleared by SSA or Another Federal Agency. If Contractor personnel previously received a suitability determination from SSA or another Federal agency, the CPOC should include this information next to the Contractor personnel's name on the initial e-QIP Applicant Listing (see paragraph (e)(1)(b)) along with the OF 306. CSPS will review the information. If CSPS determines another suitability determination is not required, it will provide a letter to the CPOC and the COR-COTR indicating the Contractor personnel was previously cleared under another Federal contract and does not need to go through the suitability determination process again.

(h) A Contractor is not entitled to an equitable adjustment of the contract because of an unfavorable suitability determination(s). Additionally, if SSA determines that the number or percentage of unfavorable determinations make successful contract performance unlikely, SSA may terminate the contract for cause or default.

(i) Unsuitable Determinations

(1) The Contractor must notify the Contractor personnel of any unsuitable determinations as soon as possible after receipt of such a determination.

(2) The Contractor must submit requests for clarification for unsuitable determinations in writing within 30 days of the date of the unsuitable determination to the email mailbox or address listed below. Contractor personnel must file their own requests; Contractors may not file requests on behalf of Contractor personnel.

dchr.ope.hspd12appeals@ssa.gov OR

Social Security Administration

Center for Suitability and Personnel Security

Attn: Suitability Program Officer

6401 Security Boulevard

2246 Annex Building

Baltimore, MD 21235

(j) Contractor Notification to Government. The Contractor shall notify the COR-COTR and CSPS within one business day if any Contractor personnel is arrested or charged with a crime during the term of this contract, or if there is any other change in the status of Contractor personnel (e.g. leaves the company, no longer works under the contract, the alien status changes, etc.) that could affect their suitability determination. The Contractor must provide in the notification as much detail as possible, including, but not limited to: name(s) of Contractor personnel whose status has changed, contract number, the type of charge(s), if applicable, date of arrest, the court date, jurisdiction, and, if available, the disposition of the charge(s).

(k) Obtaining a Credential

(1) This section applies only if Contractor personnel will have access to a SSA information system or routine or unescorted access to a SSA facility or site for a period of six months or more as described in paragraph (c)(1).

(2) Once the Contractor personnel receive notification of an acceptable suitability determination, but prior to beginning work under the contract, the Contractor personnel must appear at the respective Regional Security Office or SSA Headquarters Parking and Credentialing Office to begin the credentialing process. The Contractor must contact the COR-COTR to arrange for credentialing. Once the COR-COTR makes the appointment, the COR-COTR must contact the Contractor to inform the Contractor of the credentialing appointment(s). The COR-COTR will also arrange for the Contractor personnel to be escorted (by either the COR-COTR or a COR-COTR's representative) to the appropriate credentialing office at the time of this appointment. The Contractor personnel must present the suitability determination letter and two forms of identification at this meeting. At least one of the forms of identification must be a Government-issued photo identification (ID) (for acceptable forms of ID see List of Acceptable Documents on OAG's website). For SSA Headquarters access, a completed Form SSA-4395, Application for Access to SSA Facilities, signed by the Contractor personnel and the COR-COTR is also required. The COR-COTR will provide the SSA-4395 Form to the Contractor personnel when applicable.

(3) Credentialing appointments last approximately 15 minutes. Depending on a Contractor's scheduling needs and availabilities, Contractor personnel may be scheduled for credentialing all in one day (this process may take a few hours to complete, depending on the number of Contractor personnel that need to be credentialed) or they may come in at separate times convenient to the Contractor personnel's and the COR-COTR's schedules.

(4) Contacts

a. SSA Headquarters' Parking and Credentialing Office representatives can be reached at Parking.and.Credentialing@ssa.gov or 410-965-5910.

b. Research Triangle Park Parking and Credentialing Office representatives can be reached at SSC.Parking.and.Credentialing@ssa.gov or 877-586-6650, extensions 25206 or 25207.

c. Regional Security Office contact information is in the Appendix at the end of this clause.

(l) Contractor Return of PIV Credential. The Contractor must account for and ensure that all forms of Government-provided identification (PIV credential) issued to Contractor personnel under this contract are returned to SSA's Headquarters' Parking and Credentialing Office or Regional Security Office, as appropriate, as soon as any of the following occur: when no longer needed for contract performance; upon completion of any Contractor personnel employment; or upon contract completion or termination.

(m) Government Control. The Government has full control over and may grant, deny, or withhold access to a facility, site, system, or information and may remove Contractor personnel, or require the Contractor to remove Contractor personnel from performing under the contract for reasons related to conduct even after Contractor personnel are found suitable to work on the contract (see paragraph (n) below).

(n) Removal From Duty. The CO, in coordination with the COR-COTR and CSPS, may remove a Contractor, or request the Contractor immediately remove any Contractor personnel from working under the contract based on conduct that occurs after a favorable suitability determination. This includes temporarily removing Contractor personnel arrested for a violation of law pending the outcome of any judicial proceedings. The Contractor must comply with these requests to remove any Contractor personnel. The Government's determination may be made based on, but not limited to, these incidents involving the misconduct or delinquency:

(1) Violation of the Rules and Regulations Governing Public Buildings and Grounds, 41 CFR 101-20.3. This includes any local credentialing requirements.

(2) Neglect of duty, including sleeping while on duty; unreasonable delays or failure to carry out assigned tasks; conducting personal affairs while on duty; and refusing to cooperate in upholding the integrity of SSA's security program.

(3) Falsification or unlawful concealment, removal, mutilation, or destruction of any official documents, records, or Government property or concealment of material facts by willful omissions from official documents or records.

(4) Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words or actions, or fighting. Also, participating in disruptive activities that interfere with the normal and efficient operations of the Government.

(5) Theft, vandalism, or any other criminal actions.

(6) Selling, consuming, possessing, or being under the influence of intoxicants, drugs, or substances that produce similar effects.

(7) Improper use of official authority or credentials.

(8) Unauthorized use of communications equipment or Government property.

(9) Misuse of weapon(s) or tools used in the performance of the contract.

(10) Unauthorized access to areas not required for the performance of the contract.

(11) Unauthorized access to SSA's employees' personal property.

(12) Violation of security procedures or regulations.

(13) Prior Contractor personnel unsuitability determination by SSA or another Federal agency.

(14) Unauthorized access to, or disclosure of, agency programmatic or sensitive information, or Internal Revenue Service Tax Return information.

(15) Failure to ensure the confidentiality of or failure to protect from disclosure, agency information entrusted to them. Certain provisions of these statutes and regulations apply to Federal employees, and apply equally to Contractor personnel: The Privacy Act of 1974, The Tax Reform Act of 1976 and the Taxpayer Browsing Protection Act of 1997, SSA regulation 1, The Computer Fraud and Abuse Act of 1986, and Section 1106 of the Social Security Act.

(16) Being under investigation by an appropriate authority for violating any of the above.

(o) The Contractor is required to include the substance of this clause in any subcontract requiring the subcontractor to access a SSA facility, site, system, or information. However, the Contractor must obtain, review, and submit to SSA all of the completed and required forms (see paragraph (e) from the subcontractor. SSA will not accept completed forms from anyone other than the Contractor.

Appendix:

Regional Security Offices

Regional Credentialing Contacts for Contractor Personnel

Region 1 – Boston

Management and Operations Support, Wilson Osorio, 617-565-2840

Region 2 – New York

Center for Materiel Resources, Physical Security and Safety Team, Emmanuel Fernandez, 212-264-2603

Region 3 – Philadelphia

For Mid-Atlantic Social Security Center occupants: Center for Materiel Resources, Kevin Wiley, 215-597-1627

For all others: Center for Automation, Security and Integrity, 215-597-5100

Region 4 – Atlanta

Center for Security and Integrity

Willie Martin, 404-562-1761

Charlene C. Jones, 404-562-1432

Glen Gaston, 404-562-1871

Dennis Loewer, 404-562-1340

Region 5 – Chicago

Management and Operations Support, Building Services Unit

Sharon Young, 312-575-4150

Evelyn Principe, 312-575-6342

Sofia Luna, 312-575-5762

Carlon Brown, 312-575-5957

Colleen Carrington, 312-575-5242

Region 6 – Dallas

Center for Materiel Resources, Employee Relations, Veronica Drake, 214-767-2221

Region 7 – Kansas City

Center for Automation Security Integrity, General Office Line, 816-936-5555

Region 8 – Denver

Center for Security and Integrity, Phil Mocon, 303-844-4016

Region 9 - San Francisco

Center for Security and Integrity, Cassandra Howard, 510-970-4124

Region 10 - Seattle

Center for Security and Integrity

Mary Bates, 206-615-2105

Lisa Steepleton, 206-615-2183

(End of clause)

C3-3 2352.204-2 Federal Information Security Management Act (FISMA) and Agency Privacy Management (DEC 2014)

(a) Definitions

Terms defined for this clause:

“Agency” means the Social Security Administration (SSA).

“OAG” means the Office of Acquisition and Grants at SSA.

“PIV Credential” means personal identity verification credentials required for Contractor personnel requiring access to an SSA information system or routine, unescorted access to a SSA facility or site for a period of six months or more.

(b) Agency Responsibility Related to FISMA Training Requirements

(1) The FISMA of 2002 (Title III, Pub. L. No. 107-347) (http://csrc.nist.gov/drivers/documents/FISMA-final.pdf) and the Office of Management and Budget policy (through Circular A-130, Appendix III, http://www.whitehouse.gov/omb/circulars_a130_a130appendix_iii) require all agency employees, and Contractor and subcontractor personnel working under agency contracts who will have access to any kind of SSA information, receive periodic training in computer security awareness and accepted computer security practice. This includes training for Contractor personnel who do not have access to electronic information systems. The training level is tailored to the risk and magnitude of harm related to the required activities.

(2) SSA’s Security Awareness Contractor Personnel Security Certification (CPSC) form, SSA-222, adequately covers the required information technology security and privacy awareness training for this contract. The SSA-222 is on OAG’s internet site (see paragraph (c)(3)(i) below). This training does not preclude any additional role-based training specified elsewhere in this contract.

(c) Contractor Responsibilities Related to FISMA Training Requirements

(1) Contractor Personnel Requiring an SSA-issued PIV Credential and Access to SSA’s Network

(i) Following contract award, the agency mandates Contractor personnel requiring a PIV credential to take security awareness training by reading and electronically signing the CPSC

form, SSA-222, during the PIV credentialing process. This requirement also applies to Contractor personnel requiring a PIV credential subsequently added to the contract. If Contractor personnel receive a PIV credential, Contractors are not required to send an email per paragraph (c)(3)(iii).

(ii) For each successive year the contract is in operation, Contractor personnel shall take annual security awareness training via a video on demand on SSA's intranet website. Contractor personnel with a valid SSA email address will receive an email to take this training at the appropriate time.

(2) Contractor Personnel Requiring an SSA-issued PIV Credential but Not Access to SSA's Network:

(i) Following contract award, the agency mandates Contractor personnel requiring a PIV credential to take security awareness training by reading and electronically signing the CPSC form, SSA-222, during the PIV credentialing process. This requirement also applies to Contractor personnel subsequently added to the contract and requiring a PIV credential. For Contractor personnel receiving a PIV credential, Contractors are not required to send an email per paragraph (c)(3)(iii) for the first year of the contract.

(ii) If applicable, for each successive year of the contract, the Contractor shall repeat the processes described in paragraphs (c)(3)(i)-(iii), below, on an annual basis. The Contractor must submit the information in paragraph (c)(3)(iii), below, within 45 days of: the date the option was renewed, or the anniversary of the contract award date, whichever comes first.

(3) Contractor Personnel Not Requiring an SSA-issued PIV Credential and Not Access to SSA's Network:

(i) Following contract award, the Contractor shall ensure that all Contractor personnel performing under this contract take the security awareness training by reading and signing the CPSC form, SSA-222. This requirement also applies to Contractor personnel subsequently added to the contract. A copy of this form is on OAG's Internet website (http://www.socialsecurity.gov/oag/acq/SSA-222.pdf).

(ii) The Contractor must receive signed copies of the form from each Contractor personnel working under the contract within 30 days following contract award, or within 30 days after a Contractor personnel begins working under the contract, whichever comes first.

(iii) The Contractor shall send an email to security.awareness.training@ssa.gov, with a copy to the contracting officer and the contracting officer's technical representative, within 45 days following contract award. Similarly, the Contractor shall send such email notification 45 days of when new Contractor personnel are added to perform work under the contract. The Contractor will attach each signed form, completed per paragraph (c)(3)(ii), above, to the email along with a list of the names (first, middle initial, and last) of the Contractor personnel who signed the form and the contract number they are working under.

(iv) For each successive year the contract is in operation, the Contractor shall repeat the processes described in paragraphs (c)(3)(i)-(iii), above, on an annual basis. The Contractor must

submit the information in paragraph (c)(3)(iii), above, within 45 days of: the date the option was renewed, or the anniversary of the contract award date, whichever comes first.

(4) The Contractor shall retain copies of signed SSA-222 forms mentioned in paragraphs (c)(2) and (3) above for potential future SSA audits for a period of three years after final payment (per Federal Acquisition Regulation Section 4.703).

(d) Applicability of this Clause to Subcontractor Personnel. The Contractor is required to include a clause substantially the same as this in all subcontracts awarded under the prime contract. This clause shall require the subcontractors to follow the instructions in paragraph (c) of this clause. For subcontractor personnel following paragraphs (c)(2) and (3), the subcontractor shall submit the signed forms to the Contractor and the Contractor will be responsible for submitting this information to SSA per paragraph (c)(3)(iii). The subcontractor shall be responsible for maintaining its signed forms as detailed in paragraph (c)(4).

(End of clause)

C3-4 2352.204-3 Records Management Mandatory Annual Training (JUN 2020)

(a) Definitions - Terms defined for this clause -

“Agency” means the Social Security Administration (SSA).

“Contractor” means any entity having a relationship with SSA because of this contract. This term includes, but is not limited to, corporations, limited liability partnerships, and sole proprietorships.

“Contractor personnel” means employees of the Contractor, employees of the subcontractor, any consultant retained by the Contractor or subcontractor, any volunteer or intern of the Contractor or subcontractor, and if the Contractor or subcontractor is a sole proprietorship, it refers to the sole proprietorship.

“COR” means contracting officer’s representative.

“Federal record” means all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

“OAG” means the Office of Acquisition and Grants at SSA.

“Subcontractor” means any entity having a relationship with SSA’s Contractor because of this contract. This term includes, but is not limited to, corporations, limited liability partnerships, and sole proprietorships.

(b) Purpose

This clause provides SSA's polices and procedures and Contractor's responsibilities for SSA providing training and guidance to all Contractors and Contractor personnel regarding their Federal records management responsibilities.

(c) Authorities

(1) National Archives and Records Administration bulletin 2017-01 (https://www.archives.gov/records-mgmt/bulletins/2017/2017-01-html)

(2) Presidential Memorandum M-19-21 (https://www.whitehouse.gov/wp-content/uploads/2019/06/M-19-21.pdf)

(d) Contractor Responsibilities Related to Records Management Training Requirements

(1) Contractor Personnel Requiring an SSA-issued Personal Identity Verification Credential and Access to the Agency's Network

(i) Following contract award, Contractor personnel performing under this contract must take the records management training. Contractor personnel must read the Records Management Training document entitled Records and Information Management Annual Contractor Compliance Training and complete the Certification of Social Security Administration Records Management Awareness: Contractor Personnel Compliance document. This requirement also applies to Contractor personnel subsequently added to the contract. These documents are located on OAG's Internet website (https://www.ssa.gov/oag/acq/oagacq_records-management.htm).

(ii) The Contractor must receive signed copies of the completed Certification from each Contractor personnel working under the contract within 30 calendar days following contract award, or within 30 calendar days after a Contractor personnel begins working under the contract. The Contractor will attach each signed Certification to an email along with a list of names of the Contractor personnel who signed the Certification and the contract number they are working under and email it to the COR within 45 calendar days of award or when Contractor personnel begin working under the contract.

(iii) For each successive year of the contract, if any, Contractor personnel must take annual records management training via a video on demand on an SSA-managed website. Contractor personnel with a valid SSA.gov email address will receive an email to take this training at the appropriate time. The COR will notify Contractor personnel without an SSA email address of this training requirement.

(2) Contractor Personnel Not Requiring Personal Identity Verification or Agency Network Access:

(i) Following contract award, Contractor personnel performing under this contract who do not meet the requirements in paragraph (1), above, must take the records management training by reading the Records Management Training document entitled Records and Information Management Annual Contractor Compliance Training and completing the Certification of Social Security Administration Records Management Awareness: Contractor Personnel Compliance document. This requirement also applies to Contractor personnel subsequently added to the

contract. These documents are located on OAG's Internet website (https://www.ssa.gov/oag/acq/oagacq_records-management.htm).

(ii) The Contractor must receive signed copies of the completed Certification from each Contractor personnel working under the contract within 30 calendar days following contract award, or within 30 calendar days after a Contractor personnel begins working under the contract. The Contractor will attach each signed Certification to an email along with a list of names of the Contractor personnel who signed the Certification and the contract number they are working under and email it to the COR within 45 calendar days of award or when Contractor personnel begin working under the contract.

(iii) For each successive year, if any, of the contract, the Contractor shall repeat the processes described in paragraphs (d)(2)(i) and (ii), above.

(3) The Contractor and SSA shall retain copies of the signed Certification mentioned in paragraphs (d)(1) and (2) above for potential future SSA audits for a period of three years after final payment (per Federal Acquisition Regulation 4.703).

(e) Applicability of this Clause to Subcontractor Personnel.

The Contractor is required to include a clause substantially the same as this in all subcontracts awarded under the prime contract. This clause shall require the subcontractors to follow the instructions in paragraph (d) of this clause. The subcontractor shall submit the signed Certifications to the Contractor and the Contractor will be responsible for submitting this information to SSA. The subcontractor shall be responsible for maintaining its signed Certifications as detailed in paragraph (d)(3).

(End of clause)

C3-5 2352.209-1 Key Personnel (FEB 2016)

(a) Key personnel designated under this contract are those personnel assigned to Key positions or labor categories and are essential to the work performed herein. The Contracting Officer (CO) will modify the contract during the course of the contract to either add or delete Key personnel, as appropriate.

(b) Key Personnel of this contract are individuals assigned to the following positions or labor categories:

Key Personnel	Labor Category
To be completed at time of award	Project Manager Electrical Mechanic Supervisor HVAC Mechanic

[*Contractor to fill in Contractor's key personnel information with quote/proposal submission*]

(c) SSA has determined that continuity through the retention of highly qualified Contractor personnel is a major factor for success in achieving high quality products and efficient performance of the contract. If it becomes necessary for the Contractor to replace Key personnel after contract award, the Contractor shall provide a written evaluation of the impact on the progress and continuity of the relevant work that might result by replacing these personnel. The Contractor shall submit this evaluation along with the names and resumes of replacement personnel to the CO and the Contracting Officer's Representative (COR)-Contracting Officer's Technical Representative (COTR) for review and approval not later than two calendar weeks (or 30 (thirty) calendar days if security clearance is needed) prior to their replacement, or as soon as known. All replacements must possess qualifications equal to or higher than the qualifications of the person replaced. The CO and COR-COTR will evaluate such requests and the CO will promptly notify the Contractor of approval or disapproval of the replacement key personnel.

(d) The Contractor further agrees to include the substance of this clause in any subcontract awarded under this contract

(End of clause)

C3-6 2352.224-1 Protection of Confidential Information (DEC 2008)

(a) "Confidential information," as used in this clause, means information or data, or copies or extracts of information or data, that is: (1) provided by the Social Security Administration (SSA) to the Contractor for, or otherwise obtained by the Contractor in, the performance of this contract; and (2) of a personal nature about an individual, such as name, home address, and social security number, or proprietary information or data submitted by or pertaining to an institution or organization, such as employee pay scales and indirect cost rates.

(b) The Contracting Officer and the Contractor may, by mutual consent, identify elsewhere in this contract specific information or categories of information that the Government will furnish to the Contractor or that the Contractor is expected to generate which are confidential. Similarly, the Contracting Officer and the Contractor may, by mutual consent, identify such confidential information from time to time during the performance of the contract. The confidential information will be used only for purposes delineated in the contract; any other use of the confidential information will require the Contracting Officer's express written authorization. The Contracting Officer and the Contractor will settle any disagreements regarding the identification pursuant to the "Disputes" clause.

(c) The Contractor shall restrict access to all confidential information to the minimum number of employees and officials who need it to perform the contract. Employees and officials who need access to confidential information for performance of the contract will be determined in conference between SSA's Contracting Officer, Contracting Officer's Technical Representative, and the responsible Contractor official. Upon request, the Contractor will provide SSA with a list of "authorized personnel," that is, all persons who have or will have access to confidential information covered by this clause.

(d) The Contractor shall process all confidential information under the immediate supervision and control of authorized personnel in a manner that will: protect the confidentiality of the

records; prevent the unauthorized use of confidential information; and prevent access to the records by unauthorized persons.

(e) The Contractor shall inform all authorized personnel with access to confidential information of the confidential nature of the information and the administrative, technical and physical safeguards required to protect the information from improper disclosure. All confidential information shall, at all times, be stored in an area that is physically safe from unauthorized access. See paragraph (f) below regarding the minimum standards which the safeguards must meet.

(f) Whenever the Contractor is storing, viewing, transmitting, or otherwise handling confidential information, the Contractor shall comply with the applicable standards for security controls that are established in the Federal Information Security and Management Act (FISMA). (These standards include those set by the National Institute of Standards and Technology (NIST) via the Federal Information Processing Standards (FIPS) publications and NIST Special Publications, particularly FIPS 199, FIPS 200, and NIST Special Publications - 800 series.)

(g) If the Contractor, in the performance of the contract, uses any information subject to the Privacy Act of 1974, 5 U.S.C. 552a, and/or section 1106 of the Social Security Act, 42 U.S.C. 1306, the Contractor must follow the rules and procedures governing proper use and disclosure set forth in the Privacy Act, section 1106 of the Social Security Act, and the Commissioner's regulations at 20 C.F.R. Part 401 with respect to that information.

(h) For knowingly disclosing information in violation of the Privacy Act, the Contractor and Contractor employees may be subject to the criminal penalties as set forth in 5 U.S.C. Section 552(i)(1) to the same extent as employees of SSA. For knowingly disclosing confidential information as described in section 1106 of the Social Security Act (42 U.S.C. 1306), the Contractor and Contractor employees may be subject to the criminal penalties as set forth in that provision.

(i) The Contractor shall assure that each Contractor employee with access to confidential information is made aware of the prescribed rules of conduct, and the criminal penalties for violations of the Privacy Act and/or the Social Security Act.

(j) Whenever the Contractor is uncertain how to handle properly any material under the contract, the Contractor must obtain written instructions from the Contracting Officer addressing this question. If the material in question is subject to the Privacy Act and/or section 1106 of the Social Security Act or is otherwise confidential information subject to the provisions of this clause, the Contractor must obtain a written determination from the Contracting Officer prior to any release, disclosure, dissemination, or publication. Contracting Officer instructions and determinations will reflect the result of internal coordination with appropriate program and legal officials.

(k) Performance of this contract may involve access to tax return information as defined in 26 U.S.C. Section 6103(b) of the Internal Revenue Code (IRC). All such information shall be confidential and may not be disclosed without the written permission of the SSA Contracting Officer. For willfully disclosing confidential tax return information in violation of the IRC, the

Contractor and Contractor employees may be subject to the criminal penalties set forth in 26 U.S.C. Section 7213.

(l) The Government reserves the right to conduct on-site visits to review the Contractor's documentation and in-house procedures for protection of and security arrangements for confidential information and adherence to the terms of this clause.

(m) The Contractor must include this clause in all resulting subcontracts whenever there is any indication that the subcontractor(s), engaged by the Contractor, and their employees or successor subcontractor(s) and their employees might have access to SSA's confidential information.

(n) The Contractor must assure that its subcontractor(s) and their employees or any successor subcontractor(s) and their employees with access to SSA confidential information are made aware of the prescribed rules of conduct. For knowingly disclosing SSA's confidential information, any subcontractor(s) and their employees or successor subcontractor(s) and their employees may be subject to criminal penalties as described in section 1106 of the Social Security Act (42 U.S.C. 1306) and the Privacy Act (5 U.S.C. 552a).

(End of clause)

C3-7 2352.227-1 Dissemination of Information (SEP 2013)

Data and information either provided to the Contractor, or to any subcontractor or generated by activities under the proposed contract is privileged. The Contractor, and any subcontractors, shall be restricted from duplicating, using or disclosing such data or information, in whole or in part, outside the Social Security Administration for any purpose other than the fulfillment of the requirements set forth in this contract. This restriction does not limit the Contractor's right to use such data or information if obtained from a non-restricted source. Refer any questions about "privileged information" to the Government Contracting Officer's Technical Representative, through the Contracting Officer.

(End of clause)

C3-8 2352.228-1 Insurance Requirements (SEP 2013)

(a) In accordance with FAR clause 52.228-5, "Insurance - Work on a Government Installation," the Contractor shall maintain, at his/her own expense, during the entire period of performance under this contract, the minimum insurance set forth below:

(1) Worker's Compensation Insurance, or equivalent worker's compensation coverage, as required or prescribed by law, with the minimum employer liability coverage of $300,000.00 for accidental bodily injury or death, or for occupational disease.

(2) Comprehensive General Liability with a minimum of $1,000,000.00 per occurrence for bodily injury and $100,000.00 per occurrence for property damage.

(3) Automobile Liability with a minimum of $200,000.00 per person and $500,000.00 per occurrence for bodily injury and $100,000.00 per occurrence for property damage.

(b) The Contractor shall file with the Contracting Officer, within ten (10) days after contract award, a certificate of insurance evidencing the above coverage.

(c) The Contractor warrants that such insurance coverage for all subcontractors who will work on the premises does or will exist before any subcontractor personnel enter the Government premises.

(End of clause)

C3-9 2352.232-1 Invoice Submission and Payment Related Information (DEC 2018)

(a) The invoice shall include all elements of a proper invoice as defined in the invoice or payment clause used in this award and any other information required below or in any other contract clause. To assist the Government in making timely payments, include the Contractor's Taxpayers Identification Number, Data Universal Numbering System number, contract, and the order number, if any, on each invoice.

(b) Email communication is the preferred method of submission for invoices and public vouchers. If the invoice cannot be emailed, submit it via regular mail or by hand carrying it to the Office of Travel and Administrative Payment Services at the address below.

(c) If submitting electronically:

Submit the invoice as an attachment to an email message (the preference is one attached invoice as a .pdf file per email) to otaps.daps.invoices@ssa.gov.

(d) If submitting by mail, send to:

Social Security Administration

Office of Travel and Administrative Payment Services

Post Office Box 47

Baltimore, Maryland 21235-0047

(e) If hand carried, deliver to:

Social Security Administration

Office of Travel and Administrative Payment Services

2310 East Low Rise Building

6401 Security Boulevard

Baltimore, Maryland 21235-0047

(f) The telephone number of the administrative payments customer service help desk is (410) 965-0607.

(g) The Government will make payment to the Contractor using the Electronic Funds Transfer (EFT) information contained in the System for Award Management (SAM) database (https://www.sam.gov/SAM/). In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to the SAM database. The EFT information submitted must be that of the Contractor unless there is an official Notice of Assignment on file with the Office of Travel and Administrative Payment Services.

(h) Remittance information associated with EFT payments is available via the Invoice Processing Platform (IPP) on the Department of Treasury's Internet site at http://www.ipp.gov. After registering in IPP for Treasury payment status, email OTAPS.Vendor.Maintenance@ssa.gov and the SSA vendor maintenance team will flag the vendor to start receiving Treasury payment information in IPP (this process may take several business days).

(i) The Contractor may also direct payment inquiries to SSA's Office of Travel and Administrative Payments by:

(1) Using the Financial Interactive Voice Response System (FIVR) (http://www.ssa.gov/vendor/fivr.htm). FIVR is an automated self-service telephone system available 24 hours a day that allows direct electronic access to administrative payment information using the telephone keypad. The Contractor can access FIVR by calling (410) 965-0607. The services available through FIVR are available through a Telecommunications Device for the Deaf line at 410-597-1395. Customer Service Representatives are available to answer vendor payment inquiries Monday - Friday, between 8 a.m. and 4:30 p.m., Eastern Standard Time.

(2) Sending an email to payment.inquiries@ssa.gov, or visiting the internet site at http://www.socialsecurity.gov/vendor/contact.htm. The Contractor can also access the IPP system through a link on this site.

(j) Small businesses may obtain assistance from SSA's Office of Small and Disadvantaged Business Utilization (OSDBU) Director to obtain payments, required late payment interest penalties, or information regarding payments due to such concerns. Send emails to smallbusiness@ssa.gov or visit the OSDBU website at https://www.ssa.gov/agency/osdbu/.

(End of clause)

C3-10 2352.232-4 Contract Funding During a Continuing Resolution (JUL 2011)

(a) This contract may be partially funded if it is awarded during a continuing resolution. If this occurs, funds will not be available for performance of this contract beyond the date specified on the contract. The Government's obligation for performance beyond that date is contingent upon the availability of additional appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond the date specified on the contract, until additional funds

are made available to the Contracting Officer for performance, and added by contract modification.

(b) If the contract is partially funded, the Government will not accept supplies or services beyond the specified period of performance until additional funds have been added by contract modification.

(c) If this is a firm-fixed-price contract, the balance of the unfunded portion of the contract period will be obligated once the agency has received its full appropriation, and the Contracting Officer has authority to fund the remaining portion of the contract.

(End of clause)

C3-11 2352.232-5 Option Period Funding During a Continuing Resolution (JUL 2011)

(a) An option period(s) under this contract may be partially funded if exercised (awarded) during a continuing resolution. If this occurs, funds will not be available for performance of the option period beyond the date specified on the contract modification. The Government's obligation for performance beyond that date is contingent upon the availability of additional appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under the option period beyond the date specified on the relevant contract modification, until additional funds are made available to the Contracting Officer for performance, and added by contract modification.

(b) If the option period is partially funded, the Government will not accept supplies or services beyond the specified period of performance until additional funds have been added by contract modification.

(c) If this is a firm-fixed-price option period, the balance of the unfunded portion of the option period will be obligated once the agency has received its full appropriation, and the Contracting Officer has the authority to fund the remaining portion of the contract.

(End of clause)

C3-12 2352.242-1 Post Award Evaluation of Contractor Performance (April 2015)

(a) Contractor Performance Evaluations: Interim and final Contractor performance evaluations shall be prepared in the Department of Defense's Contractor Performance Assessment Reporting System (CPARS) per Federal Acquisition Regulation Subpart 42.15 and the CPARS user manual at www.cpars.gov/cparsfiles/pdfs/CPARS_User_Manual.pdf .

(b) An interim Contractor performance evaluation is prepared and completed as determined by the contracting officer (known as the assessing official in CPARS).

The final performance evaluation is prepared and completed within 120 days after completion of the contract, purchase order, delivery order or task order, or Blanket Purchase Agreement call order over the simplified acquisition threshold. Complete details on the business steps associated

with the CPARS process is at FAR Subpart 42.15 and the CPARS User Manual at www.cpars.gov/cparsfiles/pdfs/CPARS_User_Manual.pdf.

(c) Electronic Access to Contractor Performance Evaluations:

(1) The Contractor shall designate a performance evaluation review representative (PERR)(known as the Contractor representative in CPARS) in paragraph (d) below who will be responsible for reviewing the Contractor's interim and final performance evaluation assessments completed by the Government before the assessments are finalized in CPARS. The Contractor is responsible for keeping its PERR information in paragraph (d) current with the contracting officer throughout the life of this contract. Only the PERR may access, review, and comment on the Contractor's performance evaluations in CPARS prior to finalization.

(2) The agency Focal Point (FP) or Alternate FP, are the only individuals who can grant CPARS access to the PERR.

(3) Once award is made, the agency FP or Alternate FP will grant access to the PERR. The PERR will receive a system-generated email when: access has been granted to CPARS; and there is a performance evaluation assessment to review. Only the PERR receiving the email has access to the assessment.

(4) The CPARS website is www.cpars.gov. The website provides a drop down menu for "FAQs" and "Guidance," where the PERR can obtain a CPARS User Manual. New PERRs can access on-line training at the drop down tab for "Training."

(d) Contractor's Designated Performance Evaluation Review Representative (PERR) (known as the Contractor representative in CPARS)

Name: [*To be completed at award*]

Address: [*To be completed at award*]

Phone: [*To be completed at award*]

E-mail: [*To be completed at award*]

UserID (complete if the PERR is an existing CPARS user): [*To be completed at award*]

C3-13 2352.242-2 Designation of Contracting Officer's Representative (COR)-Contracting Officer's Technical Representative (COTR) and COR-Alternate COTR (ACOTR) (OCT 2015)

(a) The following Contracting Officer's Representative (COR-COTR) and COR-Alternate COTR (ACOTR) will represent the Government for the purpose of this award:

COR-COTR NAME [*At time of award fill in COR-COTR name*]
TITLE [*At time of award fill in COR-COTR title*]
ADDRESS [*At time of award fill in COR-COTR address*]

TELEPHONE [*At time of award fill in COR-COTR telephone number*]
EMAIL [*At time of award fill in COR-COTR email*]

COR-ACOTR NAME [*At time of award fill in COR-ACOTR name*]
TITLE [*At time of award fill in COR-ACOTR title*]
ADDRESS [*At time of award fill in COR-ACOTR address*]
TELEPHONE [*At time of award fill in COR-ACOTR telephone number]*
EMAIL [*At time of award fill in COR-ACOTR email]*

(b) The COR-COTR or COR-ACOTR may not re-delegate the authority outlined in this clause, or the authority specified within their COR-COTR designation letters.

(c) The COR-COTR is responsible for the following general duties:

(1) Monitoring the Contractor's technical progress, including the surveillance and assessment of performance and recommending to the Contracting Officer (CO) changes in requirements;

(2) Interpreting the Statement of Work (SOW), statement of objective (SOO), or performance work statement (PWS), and any other technical performance requirements;

(3) Performing technical evaluation of requirements as required;

(4) Performing technical inspections and acceptances required by this award;

(5) Assisting in the resolution of technical problems encountered during performance;

(6) Certifying invoices or vouchers for payment by confirming the receipt of goods and/or services at the contracted price/costs; and

(7) Initiating a Contractor Performance Assessment Report (CPAR) within 30 days after electronic notification that a CPAR is required.

(d) The COR- ACOTR is responsible for carrying out the duties of the COR-COTR only in the event the COR-COTR can no longer perform his or her duties as assigned, or is unavailable.

(e) The COR-COTR, COR- ACOTR, and COR-Task Manager (COR-TM) (if applicable) are the only Government employees authorized by the CO to perform certain functions of the award. The COR-COTR and COR-ACOTR are authorized to perform the functions listed above, and may provide the technical direction described below. However, if the award calls for the designation of a COR-TM, see Section C3-14 for the authority, responsibilities, and limitations of the COR-TM at the task level.

(f) The CO is the only person with authority to act as agent of the Government under this award. Only the CO has authority to:

(1) Direct or negotiate any changes in the SOW, SOO, or PWS;

(2) Modify or extend the period of performance;

(3) Change the delivery schedule;

(4) Authorize reimbursement to the Contractor for any costs incurred during the performance of this award; or

(5) Otherwise, change any terms and conditions of this award.

(g) At any time during performance of this award, the CO may unilaterally remove or replace the COR-COTR or COR-ACOTR.

(h) The CO will provide written notice, transmitted electronically as an attachment to an email, or through standard mail carrier, to the Contractor, of such designation, or any change thereto, within a reasonable amount of time after award, or after notification of a change is necessary. The designation letter sets forth the specific authorities, responsibilities, and limitations of the COR-COTR, or COR-ACOTR) under this award.

(i) Performance of work under this award shall be subject to the technical direction of the COR-COTR. The term "technical direction" is defined to include, without limitation (except as specified in the COR-COTR designation letter), the following:

(1) Directions to the Contractor, on other than firm-fixed-price contracts, which redirect the contract effort, shift work emphasis between work areas or tasks, require pursuit of certain lines of inquiry, fill in details or otherwise serve to accomplish the contractual SOW;

(2) Provisions of information to the Contractor, which assists in the interpretation of drawings, specifications, or technical portions of the work description;

(3) Review and, where required by the award, approval of technical reports, drawings, specifications, and technical information to be delivered by the Contractor to the Government under the award.

(j) Technical direction must be within the general scope of the SOW, SOO, or PWS stated in Section B of this award. The COR-COTR does not have the authority to and may not issue any technical direction that affects price, quality, quantity, delivery, or other terms and conditions of the award.

(k) The COR-COTR shall issue all technical direction in writing or shall confirm in writing, within five working days after issuance, technical direction issued verbally.

(l) The Contractor shall proceed promptly with the performance of technical direction duly issued by the COR-COTR in the manner prescribed by this clause and within the COR-COTR's authority under the provisions of this clause.

(m) If, in the opinion of the Contractor, any instruction or direction issued by the COR-COTR falls outside the authority of the COR-COTR, the Contractor shall not proceed. In this case, the Contractor shall notify the CO or designated Contract Specialist in writing, within five working days after receipt of any such instruction or direction and shall request the CO modify the award accordingly. Upon receiving such notification from the Contractor, the CO shall issue an

appropriate modification to the award, or advise the Contractor, in writing, that, the technical direction is within the scope of this clause and does not constitute a change under the "Changes" clause of this award. The Contractor shall proceed immediately with the direction given. A failure of the parties to agree upon the nature of the instruction or direction, or upon the action to be taken with respect thereto, shall be subject to the "disputes" clause of the award.

(End of clause)

C3-14 2352.242-3 Designation of Contracting Officer's Representative (COR) Task Manager (COR-TM) (OCT 2015)

(a) This award requires the designation of a COR-TM:

[Check one]

[X] (1) At the contract level for one or more contract task(s). The Contracting Officer (CO) will name the COR-TM in the CO's designation memorandum, which will specify the contract task(s) and COR-TM's associated authority, responsibilities, and limitations, or;

[] (2) At the order level. The CO will name the COR-TM in the CO's designation memorandum, which will specify the task(s) per order and the COR-TMs associated authority, responsibilities, and limitations.

(b) The COR-TM may not re-delegate the authority outlined in this clause, or the authority specified within his or her designation memorandum issued by the CO.

(c) The COR-TM is responsible for assisting the COR-Contracting Officer's Technical Representative COR (COTR) in the technical monitoring and administration of the task(s) specified within the COR-TM's designations memorandum through performance and closeout. For example, the COR-TM may be responsible for the following general duties per task(s):

(1) Monitoring the Contractor's technical progress, including the surveillance and assessment of performance and recommending to the COR-COTR changes in the task(s) requirements;

(2) Interpreting the Statement of Work (SOW), statement of objective (SOO), or performance work statement (PWS), and any other technical performance requirements as it relates to his or her designated task(s);

(3) Performing technical evaluation of requirements as required;

(4) Performing technical inspections and acceptances of deliverables under the task(s);

(5) Assisting in the resolution of technical problems encountered during performance of the task(s);

(6) Reviewing invoices or vouchers to ensure they accurately reflect work completed per requirements of the task(s); and

(7) Completing a Contractor Performance Assessment Report (CPAR) within 30 days after electronic notification that a CPAR is required.

(d) The CO is the only person with authority to act as agent of the Government under this award. Only the CO has authority to:

(1) Direct or negotiate any changes in the SOW, SOO, or PWS;

(2) Modify or extend the period of performance;

(3) Change the delivery schedule;

(4) Authorize reimbursement to the Contractor for any costs incurred during the performance of this award; or

(5) Otherwise, change any terms and conditions of this award.

(e) At any time during performance of this award, the CO may unilaterally remove or replace the COR-TM.

(f) The CO will provide written notice, transmitted electronically as an attachment to an email, or through standard mail carrier, to the Contractor, of such designation, or any change thereto, within a reasonable amount of time after award, or after notification of a change is necessary. The designation memorandum sets forth the specific authorities, responsibilities, and limitations of the COR-TM for each associated task(s) under this award.

(g) Performance of work under the specified tasks shall be subject to the technical direction of the COR-TM. The term “technical direction” defined to include, without limitation (except as specified in the COR-TM designation memorandum), the following:

(1) Directions to the Contractor, on other than firm-fixed-price contracts, which redirect the contract effort, shift work emphasis between work areas or tasks, require pursuit of certain lines of inquiry, fill in details or otherwise serve to accomplish the contractual SOW;

(2) Provisions of information to the Contractor, which assists in the interpretation of drawings, specifications, or technical portions of the work description;

(3) Review and, where required by the award, approval of technical reports, drawings, specifications, and technical information to be delivered by the Contractor to the Government under the award.

(h) Technical direction for the task(s) must be within the general scope of the SOW, SOO, or PWS stated in Section B of this award. The COR-TM does not have the authority to and may not issue any technical direction that affects price, quality, quantity, delivery, or other terms and conditions of the award.

(i) All technical direction will be issued in writing by the COR-TM, or shall be confirmed by the COR-TM in writing within five working days after issuance.

(j) The Contractor shall proceed promptly with the performance of technical direction duly issued by the COR-TM in the manner prescribed by this clause and within the COR-COTR's, or COR-TM's authority under the provisions of this clause.

(k) If, in the opinion of the Contractor, any instruction or direction issued by the COR-TM falls outside the authority of the COR-TM, the Contractor shall not proceed. In this case, the Contractor shall notify the COR-COTR. The COR-COTR will either resolve the issue, or forward the issue to the CO or designated Contract Specialist for resolution per Section C3-13.

(End of clause)

C3-15 2352.242-4 Withholding of Contract Payments (SEP 2013)

Notwithstanding any other payment provisions of this contract, failure of the Contractor to submit required reports when due or failure to perform or deliver required work, supplies, or services, may result in the withholding of payments under this contract. The failure may be excused if causes are beyond the control, and without the fault or negligence of the Contractor as defined by the clause entitled "Excusable Delays" or "Default", as applicable. The Government will immediately notify the Contractor of its intention to withhold payment of any invoice or voucher submitted.

(End of clause)

C3-16 2352.242-5 Contractor's Administrator (SEP 2013)

The Contractor's representative responsible for handling contract administration is:

Name: [*To be completed at award*]

Address: [*To be completed at award*]

Phone: [*To be completed at award*]

E-mail: [*To be completed at award*]

(End of clause)

C3-17 2352.245-2 Government Telecommunications/Systems, Services, and Equipment Provided Under the Contract (NOV 2008)

(a) Government telephone services are hereby made available for routine Contractor use under this contract. The Contractor will utilize its dedicated telephone system for all possible calls. Infrequent calls by Contractor personnel from areas where Contractor telephone services are not available may be authorized at the discretion of the contracting officer or the contracting officer's technical representative.

(b) Contractors may use the SSA telephone system to conduct official business; i.e., if the call is necessary to perform the SSA contract. Such official business calls may include emergency calls and calls which SSA determines are necessary in the interest of performing the contract.

(c) The Government reserves the right to recover usage charges and fees associated with the use of the telephone services provided to the Contractor under this contract in the event the Contractor uses the provided service and equipment for other than the purposes authorized in paragraph (a) and (b) of this clause.

(End of clause)

SECTION C4 - Administrative Matters

C4-1 SSA Building Closures

Contractor support is not required in the event of a Government closure unless specifically required in the award. In cases such as these, the Contractor may work during periods of time when segments (buildings or business) of SSA are closed for any reason, provided security measures are followed. Such times may include Agency and facility closures due to inclement weather, late openings, early dismissals, building closures, or legal holidays.

In the event SSA Headquarters facilities in Maryland close or delay opening, announcements will be broadcast on the following TV and radio stations:

RADIO:

AM Stations: WBAL 1090

FM Stations: WWMX 106.5 or WTOP 103.5 (Washington)

TELEVISION: WBAL TV, Channel 11 – www.wbaltv.com

For headquarters offices, the announcements must specifically pertain to the Social Security Administration offices in the Baltimore metropolitan area.

In addition to the above, Contractors can obtain information via the following:

INTERNET: http://www.ssa.gov/hqalert/index.jsp

SSA Emergency Announcement Numbers:

SSA Headquarters in Baltimore, Maryland - Toll Free Phone Number: 1-866-313-2533

(TTY 410-965-7375)

Second Support Center in Durham, North Carolina - Toll Free Phone Number: 1-877-718-0944, ext. 10423

The Contractor shall call after 5:00 a.m., to obtain information regarding whether the Government is operating normally; if there is a delayed opening; or if it is closed. Decisions for the night shift occur after 2:00 p.m. and for the midnight shift after 10:00 p.m. Every effort is made to have hazardous weather information (i.e., closed or delayed opening) released as close to 5:00 a.m. ET as possible on the day of the event. However, often circumstances beyond SSA's control preclude this important information from being determined and/or posted until sometime thereafter. The agency will broadcast information internally if there is a need for the facility to close early.

C4-2 Observance of Legal Holidays and Administrative Leave

(a) The Government observes the following days as holidays:

New Year’s Day

Martin Luther King’s Birthday

Washington’s Birthday

Memorial Day

Independence Day

Labor Day

Columbus Day

Veteran’s Day

Thanksgiving Day

Christmas Day

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) When any such day falls on a Saturday or Sunday, the following Monday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the Contractor’s personnel work on a holiday, the Government will not reimburse the Contractor for holiday or other premium compensation unless authorized pursuant to an overtime clause elsewhere in the contract.

(c) When the Government grants administrative leave to its Government employees for reasons such as inclement weather, unanticipated holidays declared by the President, or similar reasons, the Contractor shall also dismiss assigned Contractor personnel working on-site unless prohibited elsewhere in the contract. However, the Contractor agrees to continue to provide sufficient personnel to perform the requirements of critical tasks already in operation or scheduled, and if necessary, shall seek guidance from the contracting officer or his/her duly authorized representative pertaining to such requirements.

(End of clause)

C4-3 Designation of Contractor’s Project Manager/Contract Coordinator

The Contractor's primary point of contact serving as the Project Manager/ Contract Coordinator for this contract is:

Name & Title: [*To be completed at award*]

Address: [*To be completed at award*]

Telephone Number: [*To be completed at award*]

Email Address: [*To be completed at award*]

C4-4 Contractor Use of Government Facilities

While on Government premises, the Contractor shall comply with the rules, regulations and procedures governing the conduct of personnel and the operation of this facility. The Contractor is also responsible for ensuring that all Contractor personnel working on Government premises are aware of the Occupant Emergency Program (OEP). During a building evacuation, all Contractor personnel must follow the instructions of SSA's Occupant Emergency Organization (OEO) personnel. Contractor must ensure that employees who are unable to follow OEO personnel verbal instructions (non-English speaking employees, hearing impaired, etc.) have a Contractor employee designated to provide assistance in following evacuation procedures or that the appropriate OEO evacuation personnel is notified of the employees impairment, location, etc. to enable the OEO personnel to effectively evacuate the employee.

(End of clause)

C4-5 Designation of Government Contracting Personnel

Bradley Karbeling, Division of Facilities Contracts, has been assigned to administer this contract. Changes in the Scope of Work, contract cost, price, quantity, quality, or delivery schedule shall be made only by a Contracting Officer by a properly executed modification. All correspondence that in any way concerns the terms or conditions of this contract must be submitted directly to the following address:

Social Security Administration
Office of Acquisition and Grants
ATTN: Bradley Karbeling
1540 Robert M. Ball Building
6401 Security Boulevard
Baltimore, Maryland 21235
Telephone Number: 410-965-9505
Email Address: Bradley Karbeling@ssa.gov

C4-6 Payment

(a) Payment will be made on a calendar month basis in arrears upon submission of an invoice. In the event the contract begins or ends during the month, payments will be prorated based on the number of calendar days in the respective month. It is the requirement of the Government to obtain complete and satisfactory performance in accordance with the terms of the specifications and quality standards of this contract.

(b) The Government is contracting for satisfactory performance of each task identified in the Statement of Work. Therefore, the Government may make deductions for unsatisfactory performance and/or nonperformance of work under this contract in accordance with Section B.7.17 “Deductions” in the Statement of Work. It is agreed that failure to accomplish any work required under this contract, to satisfactorily accomplish such work, or to comply with any provisions of this contract, where due to the carelessness, neglect, or fault of the Contractor, shall

constitute a deficiency for which a reduction of payment may be made in accordance with the terms and conditions of this contract.

(c) The Contractor shall unconditionally pay to each employee working under this contract all wages due free and clear and without subsequent deduction (except as otherwise provided by law or regulation, see 29 CFR Part 4), rebate, or kickback on any account. These payments shall be made no later than one pay period following the end of the regular pay period in which the wages were earned or accrued. A pay period under this contract may not be of any duration longer than semi-monthly.

C4-7 Authority of Ordering Officials

The Contractor shall accept purchase card orders under this contract for additional services below the micro-purchase threshold. The following individuals are authorized to order optional additional services by use of a Government purchase card:

NAME	AUTHORITY/ORDERING LIMITS
[To be completed at time of award]	Micro-Purchase Threshold

Orders for optional additional services in excess of the above amounts shall be made via task orders issued on the Optional Form 347 by the CO, Office of Acquisition & Grants, Baltimore, MD.

Optional additional services, whether made using purchase card or OF347, shall be ordered under this contract at labor rates consistent with those set forth in Section A.

SECTION D - Contract Documents, Exhibits and/or Attachments

Attachment Number	Title	Date
D-1	Appendix 1 Quality Assurance Plan	07/26/2021
D-2	Appendix 2 Monthly Progress Report Template	07/26/2021
D-3	Appendix 3 Building Operating Plan Template	07/26/2021
D-4	Appendix 4 Preventative Maintenance Guide	07/26/2021
D-5	Appendix 5 Fire Safety Inspection Checklist Sample	07/26/2021
D-6	Appendix 6 Infrared Thermography Infrared Report Sample	07/26/2021
D-7	Appendix 7 Water Treatment Program	07/26/2021
D-8	Appendix 8 Shop Safety Sample	07/26/2021
D-9	Appendix 9 Lock out Tag Out Program Sample	07/26/2021
D-10	Appendix 10 Roof Condition Inspection Sample	07/26/2021
D-11	Appendix 11 Sustainment Maintenance Line Item Estimated Annual Quantities and Yearly Pricing Chart	07/26/2021
D-12	Appendix 12 Performance Metric Deductions Sheet	07/26/2021
D-13	Appendix 13 RPIE Asset List	07/26/2021
D-14	Appendix 14 GSA Form 139 Sign In Sheet	07/26/2021
D-15	Appendix 15 GSA Form 350 Unfired Vessels Inspection	07/26/2021
D-16	Appendix 16 GSA Form 1755 Welding Permit	07/26/2021
D-17	Appendix 17 GSA Form 55-02 Certificate of Elevator Inspection	07/26/2021
D-18	Appendix 18 Collective Bargaining Agreement	07/26/2021
D-19	Appendix 19 Wage Determination 2015-4239 Revision No 15	07/26/2021
D-20	Appendix 20 GSA Form 376 Elevator Inspection Report	07/26/2021
D-21	Appendix 21 Security Equipment Listing	07/26/2021
D-22	Appendix 22 Statement of Work	07/26/2021
D-23	Appendix 23 Past Performance Questionnaire	07/26/2021
D-24	Appendix 24 Sample Other than Cost or Pricing Data Sheet	07/26/2021
D-25	Appendix 25 FedConnect Instructions	07/26/2021
D-26	Appendix 26 Vendor Question Template	07/26/2021

SECTION E - Solicitation Provisions

SECTION E1 - FAR Provisions Incorporated by Reference

E1-1 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/.

(End of provision)

E1-2 52.204-7 - System for Award Management. (OCT 2018)

SECTION E2 - FAR Full Text Provisions

E2-1 52.204-16 Commercial and Government Entity Code Reporting. (AUG 2020)

(a) Definition. As used in this provision-

Commercial and Government Entity (CAGE) code means-

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

(b) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its proposal. The CAGE code must be for that name and location address. Insert the word "CAGE" before the number. The CAGE code is required prior to award.

(c) CAGE codes may be obtained via-

(1) Registration in the System for Award Management (SAM) at www.sam.gov. If the Offeror is located in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA Commercial and Government Entity (CAGE) Branch will assign a CAGE code as a part of the SAM registration process. SAM registrants located outside the United States and its outlying areas shall obtain a N(CAGE code prior to registration in SAM (see paragraph (c)(3) of this provision).

(2) The DLA Commercial and Government Entity (CAGE) Branch. If registration in SAM is not required for the subject procurement, and the Offeror does not otherwise register in SAM, an Offeror located in the United States or its outlying areas may request that a CAGE code be assigned by submitting a request at *https://cage.dla.mil*.

(3) The appropriate country codification bureau. Entities located outside the United States and its outlying areas may obtain an NCAGE code by contacting the Codification Bureau in the foreign entity's country if that country is a member of NATO or a sponsored nation. NCAGE codes may be obtained from the NSPA at *https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx* if the foreign entity's country is not a member of NATO or a sponsored nation. Points of contact for codification bureaus, as well as additional information on obtaining NCAGE codes, are available at *http://www.nato.int/structur/AC/135/main/links/contacts.htm*.

(d) Additional guidance for establishing and maintaining CAGE codes is available at *https://cage.dla.mil*.

(e) When a CAGE code is required for the immediate owner and/or the highest-level owner by Federal Acquisition Regulation (FAR) 52.204-17 or 52.212-3(p), the Offeror shall obtain the respective CAGE code from that entity to supply the CAGE code to the Government.

(f) Do not delay submission of the offer pending receipt of a CAGE code.

(g) If the solicitation includes FAR clause 52.204-2, Security Requirements, a subcontractor requiring access to classified information under a contract shall be identified with a CAGE code on the DD Form 254. The Contractor shall require a subcontractor requiring access to classified information to provide its CAGE code with its name and location address or otherwise include it prominently in the proposal. Each location of subcontractor performance listed on the DD Form 254 is required to reflect a corresponding unique CAGE code for each listed location unless the work is being performed at a Government facility, in which case the agency location code shall be used. The CAGE code must be for that name and location address. Insert the word "CAGE" before the number. The CAGE code is required prior to award.

(End of provision)

E2-2 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (OCT 2020)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions*. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations*. The Offeror represents that-

(1) It [ ] will, [ ] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It [ ] does, [ ] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures*. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model

number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

E2-3 52.204-26 Covered Telecommunications Equipment or Services-Representation (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it [ ] does, [ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

E2-4 52.209-7 Information Regarding Responsibility Matters. (OCT 2018)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror [] has [] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the Offeror checked "has" in paragraph (b) of this provision, the Offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the Offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the Offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the Offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the Offeror has provided the requested information with regard to each occurrence.

(d) The Offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

E2-5 ADDENDUM TO FAR PROVISION 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS

In accordance with FAR 12.301 and 12.302, the provision at 52.212-1 (incorporated by reference via Block 27 of the Standard Form 1449) is hereby tailored by this addendum as follows:

Revisions to Paragraphs in 52.212-1

(a) North American Industry Classification System (NAICS) code and small business size standard.

The NAICS code and small business size standard for this acquisition appear in Block 10 of the solicitation cover sheet (SF1449).

(b) *Submission of offers* is hereby revised as follows:
(1) Proposal Submission

Submit your proposal using the FedConnect web portal address listed below and before the RFP closing date and time. In addition, the proposal submission shall consist of two separate volumes, Non-Price and Price, as discussed in this section and Section E2-6. Offerors shall include line item pricing within FedConnect and shall also attach the price volume in FedConnect as a cost sensitive attachment.

Visit the FedConnect web portal at https://www.fedconnect.net and download the "FedConnect, Ready, Set, Go Guide" to begin the registration process.

Note: In order to be considered eligible for award, Offerors shall acknowledge any amendments to this solicitation by using the red acknowledgement button in FedConnect.

If Offerors encounter problems with the FedConnect website, only the FedConnect online help tool or FedConnect helpdesk can resolve issues. The FedConnect helpdesk toll free number is 1-800-899-6665, and the FedConnect support email address is support@fedconnect.net.

SSA must receive offers at or before the exact time specified in this solicitation. The Offeror shall submit software files (.xls, .doc or .pdf formats only) of the entire, completed proposal that includes all required non-price and price information as specified within this solicitation. **Offerors must separately submit the non-price and price volumes:**

- Volume I – Non-Price: The non-price volume is limited to twenty (20) single-spaced pages with a font no smaller than 11pt. with 1" margins and must not exceed any size requirements as specified within FedConnect

(cover page, table of contents, attachments and fill-ins are not included in this page-count limit). The Government will not evaluate pages in excess of this limitation unless otherwise noted.

- Volume II – Price: The price volume must include pricing for the line items for required recurring services for each year (i.e. transition period, base year, option years, etc.), including the sustaining maintenance line items from Appendix 11. Each Offeror is required to account for optional additional supplies/services by incorporating the maximum quantities as specified in Section A.7 and for sustaining maintenance line items as specified in Section A.8 (for evaluation purposes).

The Government will not consider further for evaluation and award any proposal that takes exception to the terms and conditions of this solicitation.

(2) Non-Price Volume:

At a minimum, the non-price volume must include

a. Completed SF1449 (signed and dated)
b. Acknowledgement of all solicitation amendments, if applicable
c. Reference to Request for Proposal number **28321322R00000004**
d. The time specified in the solicitation for receipt of offers (Reference SF1449, Block 8)
e. Identification of Offeror (including name, address, telephone number, email address, and appropriate points of contact)
f. The Offeror's unique entity identifier (e.g. Data Universal Number System (DUNS) number)
g. Identification of a Joint Venture (if applicable), including submission of a **signed copy** of a Joint Venture Agreement, which clearly indicates the proposed participation (i.e. roles, responsibilities, and the distribution of effort by type and percentage between the parties in performance of the Government's requirement) of each Joint Venture member (as allowed by FAR Subpart 9.6) for this solicitation and resulting contract. The Joint Venture Agreement must reference and affirm that the executed agreement is specifically for this solicitation.

   Note: Failure to provide a complete and fully executed Joint Venture Agreement and adequate supporting details as outlined above will result in no further consideration of the Offeror's proposal. The Joint Venture Agreement document does not count against the page limits stated elsewhere in this solicitation.
h. A completed copy of the FAR Provisions at Section E2-2, E2-3, E2-4, E2-7, and E2-10.
i. A completed copy of clauses C3-5, C3-12, C3-16, and C4-3.
j. "Remit to" address, if different than mailing address

k. Experience information:

Each Offeror shall describe no more than three projects/contracts demonstrating its most relevant experience in performing work of comparable size, scope, and complexity to the requirements of this RFP. The response must demonstrate how that experience qualifies the Offeror to perform the work described in this RFP.

Joint ventures may submit experiences of the individual parties to the joint venture, but are also restricted to no more than three (3) projects/contracts. However, experience of the joint venture, operating as a joint venture, is considered more relevant than experience of the individual parties to the joint venture as it represents experience of the team rather than that of the individual players.

Additionally, **the Government will not evaluate the experience of proposed subcontractors, as privity of contract does not exist between the Government and the subcontractor.**

Experience references must demonstrate the Offeror's requisite knowledge, skills, resources, and ability to accomplish contract requirements. **Relevant experience is defined as follows: Projects that have been completed within the last five years as of the closing date of the RFP, or projects that are currently active for at least one year as of the closing date of the RFP**. Relevant experience documentation must substantiate its proven experience and clearly demonstrate how the experience is relevant to meeting the objectives detailed in the Statement of Work.

For each project cited, the Contractor shall include the following information:

- Name of contracting activity (Federal Government agency, local government, commercial customer)
- Name of CO/Point of Contact (POC), including telephone number and email address for CO; Name of COTR/Technical POC including telephone number and email address for COTR/Technical POC
- Contract number and type of contract (e.g. – firm fixed price, time & materials, labor hour, etc.)
- Period of performance, inclusive of all option periods (ensure compliance with the definition of relevant experience as defined above). Include the contract award date, start date, and end date for all reference contracts.
- Performance role (e.g. – prime or subcontractor)

Note: If the experience is as a subcontractor, the Offeror must thoroughly describe the tasks and the percentage of the contract for which it (the subcontractor) was responsible for completing.

- A complete and full description of the services provided for each contract. Specifically, describe the extent to which the work required under the cited/referenced contract is similar in size, scope, and complexity to the requirements set forth in Appendix D-22 Statement of Work and elsewhere in this solicitation. At a minimum, Offerors shall furnish the following information for each experience reference (project) cited:
    1. Size (approximate square footage) of the facility where Operations and Maintenance (365/24/7) was performed
    2. Number of building occupants
    3. Type of facility (federal facility, commercial facility, data center, etc.)
    4. Experience with operating and maintaining the electrical equipment and systems in Appendix D-22
    5. Experience with operating and maintaining the mechanical equipment and systems in Appendix D-22
    6. Experience with operating and maintaining the BAS and PCS systems in Appendix D-22 or experience operating and maintaining other BAS and PCS systems
    7. Experience with operating and maintaining the CMMS system in Appendix D-22
    8. Experience with off-site support to include safety and education for contract employees
    9. Recordkeeping system utilized to keep track of employee records (i.e. training certifications, licenses, security clearances, etc.)
    10. Annual dollar value of the reference contract
    11. Quality Control Plan, including whether the Contractor provided a Quality Control Plan for the reference contract
    12. Licenses and bonding provided under the reference contract
    13. Include any additional information that will further describe the activities/functions performed under the reference contract and explain how that experience is similar in size, scope, and complexity to the requirements found in this solicitation.
    14. Indicate whether or not the contract was successfully completed, discussing success in terms of cost, schedule, and technical performance factors.
    15. Describe any significant problems that arose and explain how they were solved.

Note: Failure to supply a thorough description of the Offeror's relevant experience may result in the Offeror being determined

ineligible for award. See Section E2-6 for more information on how experience will be evaluated.

It is not sufficient to merely state past or ongoing projects/contracts are similar in size, scope, and complexity and are relevant to the requirements of this solicitation. Offerors must provide detailed rationale for <u>each project/contract cited</u> to support that they are indeed similar in size, scope, and complexity.

l. Past Performance:

The past performance evaluation will be a subjective assessment based on information submitted by references and may include other information obtained through the Contractor Performance Assessment Reporting System (CPARS). Contract references, including those not identified by the Offeror, but listed in CPARS, may be contacted for information to be used in the past performance evaluation. In the case of an Offeror without a record of relevant past performance, or for whom information on past performance is not available, the Offeror will be evaluated neither favorably nor unfavorably on past performance. The following elements will be evaluated as part of the overall past performance assessment:

a. Quality – Compliance with contract requirements, effectiveness of offeror's quality control plan/program, effective and efficient management of work force, work force properly trained and experienced to ensure that required tasks are successfully performed, no performance deductions taken for quality issues, etc.
b. Schedule – Reliable, responsive to technical direction, contract deliverables completed/provided on-time, adhered to contract schedule, no performance deductions taken for timeliness issues, timely contract administration, etc.
c. Management – Effective and efficient management, cooperative and proactive behavior, flexible, responsive to inquiries, prompt notification of problems and problem resolution, customer satisfaction, etc.

Each Offeror is responsible for having the client/company/agency for their experience reference(s) complete and submit a Past Performance Questionnaire (Appendix D-23) to the CO for each reference cited in the experience section of the Offeror's proposal. The Past Performance Questionnaire must be completed by, and received from, the client/company/Agency for the reference contract. The Government reserves the right to contact any or all references if deemed necessary to enable an adequate evaluation of the Offeror's past performance.

Each Offeror has the option to submit a CPARS assessment for the reference client/company/Agency in lieu of a past performance questionnaire.

Note: The Government will not accept any Past Performance Questionnaires submitted directly by an Offeror, nor will the Government accept any Past Performance Questionnaires after the closing date of the solicitation.

The past performance of the joint venture, operating as a joint venture, is considered more relevant than past performance of the individual parties to the joint venture as it represents past performance of the team rather than that of the individual players.

(3) Price Volume:

The awarded contract will include line items for required recurring services for each year (i.e. transition period, base year, option years, etc.), including the sustaining maintenance line items from Appendix 11. The Government may also issue additional task orders for supplies/services within the scope of the contract. Each Offeror is required to account for optional additional supplies/services by incorporating the maximum quantities as specified in Section A.7 and for sustaining maintenance line items as specified in Section A.8 (for evaluation purposes). Additionally, each offeror must include 1) specified material and subcontractor mark-up rates, and 2) fully loaded labor rates, including enough detail to verify fair and reasonable pricing for each labor category proposed. The awarded contract will incorporate the mark-up rates and the fully loaded labor rates for future ordering purposes.

At a minimum, the price volume must include:

a. A firm-fixed-price proposal, which contains a breakdown associated with performing the work outlined in the SOW and any other associated attachments.
b. Completed pricing tables within Section A, including:
    - Unit prices and extended prices for the transition period, base year, and all option years
    - Completed pricing tables within Section A (including unit prices and extended prices for the transition period, base year, and all option years, as well as material and subcontractor mark-up rates for optional additional services)

      Note: Failure to offer any of the line items in the pricing tables may result in a proposal being deemed ineligible for award.

c. Completed individual line item pricing (CLIN 0001-5009) through use of FedConnect

d. Completed copy of Appendix 11 for sustaining maintenance line items. Please fill out columns F, H, J, L, N and Q on Appendix 11.
e. The following information (other than cost or pricing data) to separately support the prices proposed for the base year and **each** contract option:
    - A full and complete breakdown of all labor categories, hours, and rates that were used to develop the price(s), clearly indicating for each labor category the base hourly wage rate; any and all additional labor cost elements necessary to comply with the requirements of any Collective Bargaining Agreement and U.S. Department of Labor Wage Rate Determination (Appendix D-18 and D-19, respectively) included in this solicitation
    - The minimum wage rates and fringe benefits applicable to this contract are outlined in the attached Department of Labor (DOL) prevailing wage determinations
    - Offerors must use Appendix D-24, "*Sample Other Than Cost or Pricing Data Worksheet"* for submission of the information required under this instruction

(c) *Period for acceptance of offers.* The amount of time the Offeror agrees to hold the prices in its offer firm for 180 days from the date specified for receipt of offers.

(d) *Product samples* is hereby deleted in its entirety as it has been determined to be not applicable to this solicitation.

(e) *Multiple offers* is hereby deleted in its entirety as it has been determined to be not applicable to this solicitation.

(f) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers and any modifications, revisions, or withdrawals so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m. local time for the designated Government office on the date that offers or revisions are due.

(2) (i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition, and:

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was

received at the Government installation designed for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an Offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)* is hereby revised as follows:

The Government intends to evaluate responses and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms from a price and technical (experience and past performance) standpoint. However, the Government reserves the right to establish a competitive range and conduct discussions

if the Contracting Officer later determines it necessary. The Government may reject any or all offers if such action is in the public interest and may waive informalities and minor irregularities in offers received.

(h) *Multiple awards* is hereby deleted in its entirety as it has been determined to be not applicable to this solicitation.

(i) *Availability of requirements documents cited in the solicitation* is hereby deleted in its entirety as it has been determined to be not applicable to this solicitation.

(j) *Unique entity identifier.* (Applies to all offers exceeding $3,500, and offers of $3,500 or less if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at *www.sam.gov* for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an Offeror for a Government contract when contacting the entity designated at *www.sam.gov* for establishing the unique entity identifier.

(k) Removed and reserved.

(l) *Debriefing.* If a post-award debriefing is given to requesting Offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial items, the make and model of the item to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

E2-6 52.212-2 Evaluation - Commercial Items. (OCT 2014)

In accordance with FAR 12.301 and 12.302, the provision at 52.212 Evaluation – Commercial Items is hereby tailored by this addendum as follows:

(A) **EVALUATION METHODOLOGY AND RELATIVE IMPORTANCE OF FACTORS**

BEST VALUE TRADE-OFF ANALYSIS

The Government will evaluate the Offeror's proposal against the following non-price factors (listed in descending order of importance):

1. Experience
2. Past Performance

Factors 1 and 2, when combined, are approximately equal to price.

The Government reserves the right to verify the cited experience by contacting references, reviewing government reports, or by any other means deemed necessary.

The Government intends to evaluate proposals and award a contract without discussions with Offerors, except for when and explanation/clarification is required for a better understanding of the proposal. Therefore, proposals should reflect the Offerors' best terms from both non-price and price standpoints.

Joint Ventures: Experience and past performance of each party to a joint venture will be evaluated only to the extent that it relates to the work that each party will be responsible for under the contract. As noted in the instructions above, experience and past performance of the joint venture, operating as a joint venture, is considered more relevant than experience and past performance of the individual parties to the joint venture as it represents experience and past performance of the team rather than that of the individual players.

Proposed Subcontractors: When evaluating an Offeror's experience and past performance under this solicitation, the Government will not consider the experience and past performance of proposed subcontractors. Because privity of contract exists between the Government and the prime Contractor alone, management functions, including project management and subcontractor management, are considered the exclusive responsibility of the prime Contractor.

1. EXPERIENCE

The Government will seek to determine whether an Offeror has proven experience to reduce contract performance risk and ensure performance success over the life of the contract. SSA will evaluate each cited example of experience separately, and assign an overall rating for this factor.

The Offeror will be evaluated based on its experience in performing work of similar size, scope, and complexity as the requirements set forth in this solicitation.

The Government will evaluate size, scope, and complexity as follows:

Size

Size will encompass various measures such as, but not limited to, the following:

- Size of the facility(s) (approximate square footage) and setting (e.g., stand-alone building, multiple buildings, and proximity of multiple buildings)
- Number of building occupants
- Total contract value

Scope

Type of work performed similar to the work requirements as described in this solicitation.

Complexity

Extent and degree that the experience demonstrates a similar number and combination of tasks/activities involving similar degrees of difficulty in the performance of the work.

2. PAST PERFORMANCE

Past Performance – The past performance evaluation will be a subjective assessment based on information submitted by references and may include other information obtained through the Contractor Performance Assessment Reporting System (CPARS). Contract references, including those not identified by the Offeror, but listed in CPARS, may be contacted for information to be used in the past performance evaluation. In the case of an Offeror without a record of relevant past performance, or for whom information on past performance is not available, the Offeror will be evaluated neither favorably nor unfavorably on past performance. The following elements will be evaluated as part of the overall past performance assessment:

Quality – Compliance with contract requirements, effectiveness of offeror's quality control plan/program, effective and efficient management of work force, work force properly trained and experienced to ensure that required tasks are successfully performed, no performance deductions taken for quality issues, etc.

Schedule – Reliable, responsive to technical direction, contract deliverables completed/provided on-time, adhered to contract schedule, no performance deductions taken for timeliness issues, timely contract administration, etc.
Management – Effective and efficient management, cooperative and proactive behavior, flexible, responsive to inquiries, prompt notification of problems and problem resolution, customer satisfaction, etc.

Management – Effective and efficient management, cooperative and proactive behavior, flexible, responsive to inquiries, prompt notification of problems and problem resolution, customer satisfaction, etc.

In the event that an Offeror has no record of relevant past performance or for whom past performance is not available, the Offeror will be evaluated as neutral (neither favorable nor unfavorably) in this area.

3. PRICE

The Government will evaluate proposals for award purposes by adding the total price for the transition period, base period, and all options (including the option to extend services), annual maximums for optional additional services IDIQ line items, and totals for sustaining maintenance IDIQ line items. Proposals may be determined unacceptable if the option prices are significantly unbalanced. The CS will require offerors to submit in its price proposal fully loaded labor rates, as well as material and subcontractor mark-up rates. While these are not included in the overall award decision, SSA will ensure they are fair and reasonable.

NOTE: The evaluation of options SHALL NOT obligate the Government to exercise the option(s). The option to exercise or not exercise option years/CLINs is a unilateral right of the Government.

(B) **BASIS OF AWARD / TRADEOFF PROCESS**

The Government contemplates award of a combination firm-fixed-price and indefinite-delivery/indefinite-quantity contract resulting from this solicitation. The indefinite-delivery/indefinite-quantity portion applies to the optional additional services in Section A.7 and sustaining maintenance items in Section A.8 with provisions to issue firm-fixed-price or labor-hour task orders resulting from this solicitation. The Government intends to award a single contract resulting from this solicitation to the responsible Offeror whose proposal, conforming to the solicitation,

represents the best value to the Government, price and non-price factors considered. This will be determined by a trade-off process that allows the Government to consider award to other than the lowest priced Offeror or other than the highest non-price rated Offeror in accordance with FAR 15.101-1. It permits trade-offs among price and non-price evaluation factors. For this solicitation, all non-price evaluation factors, when combined, are approximately equal to price.

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the specified expiration time of the offer, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

E2-7 52.212-3 Offeror Representations and Certifications-Commercial Items. (FEB 2021)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through *https://www.sam.gov*. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v)) of this provision.

(a) *Definitions*. As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology-

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business concern-

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b)(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through *http://www.sam.gov*. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Items, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs _____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract will be performed in the United States or its outlying areas. Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that it ___ is, ___ is not a small business concern.

(2) *Veteran-owned small business concern*. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents as part of its offer that it ___ is, ___ is not a veteran-owned small business concern.

(3) *Service-disabled veteran-owned small business concern*. (Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.) The offeror represents as part of its offer that it ___ is, ___ is not a service-disabled veteran-owned small business concern.

(4) *Small disadvantaged business concern*. (*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*) The offeror represents that it ___ is, ___ is not a small disadvantaged business concern as defined in 13 CFR 124.1002.

(5) *Women-owned small business concern*. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it ___ is, ___ is not a women-owned small business concern.

(6) *WOSB concern eligible under the WOSB Program*. (Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.) The offeror represents that-

(i) It ___ is, ___ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(6)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. (*The offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture:* _____.) Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(7) *Economically disadvantaged women-owned small business (EDWOSB) concern*. (Complete only if the offeror represented itself as a WOSB concern eligible under the WOSB Program in (c)(6) of this provision.) The offeror represents that-

(i) It ___ is, ___ is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(7)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. (*The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture:* _____.) Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

Note to paragraphs (c)(8) and (9): Complete paragraphs (c)(8) and (9) only if this solicitation is expected to exceed the simplified acquisition threshold.

(8) *Women-owned business concern (other than small business concern).* (Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents that it ___ is, a women-owned business concern.

(9) *Tie bid priority for labor surplus area concerns*. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____.

(10) *HUBZone small business concern*. (Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.) The offeror represents, as part of its offer, that-

(i) It ____ is, ____ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It ____ is, ____ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(10)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. (The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.) Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(d) Representations required to implement provisions of Executive Order 11246-

(1) *Previous contracts and compliance*. The offeror represents that-

(i) It ___ has, ___ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ___ has, ___ has not filed all required compliance reports.

(2) *Affirmative Action Compliance*. The offeror represents that-

(i) It ___ has developed and has on file, ___ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ___ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete

and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products.

(iii) The terms "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line item No.	**Country of origin**
_____	_____
_____	_____
_____	_____

[List as necessary]

(3) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(g)(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product.

(B) The terms "Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end product," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Line item No.	**Country of origin**

_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products.

Other Foreign End Products:

Line item No.	**Country of origin**
_____	_____
_____	_____
_____	_____

[List as necessary]

(iv) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate I*. If Alternate I to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian End Products:

Line item No.
_____
_____
_____

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Canadian or Israeli End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(g)(4) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III*. If Alternate III to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(5) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(5)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ___ Are, ___ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ___ Have, ___ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: Commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property,

(3) ___ Are, ___ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ___ Have, ___ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*. (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for *Listed End Products (Executive Order 13126). (The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).*)

(1) *Listed end products*.

Listed end product	**Listed countries of origin**
[ ]	[ ]
[ ]	[ ]
[ ]	[ ]

[List as necessary]

(2) *Certification*. (If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.)

___ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

___ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture*. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ___ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ___ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards*. (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) (The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.)

(1) [ ] Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ___ does ___ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) [ ] Certain services as described in FAR 22.1003-4(d)(1). The offeror ___ does ___ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

[ ] TIN: _____.

[ ] TIN has been applied for.

[ ] TIN is not required because:

[ ] Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

[ ] Offeror is an agency or instrumentality of a foreign government;

[ ] Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

[ ] Sole proprietorship;

[ ] Partnership;

[ ] Corporate entity (not tax-exempt);

[ ] Corporate entity (tax-exempt);

[ ] Government entity (Federal, State, or local);

[ ] Foreign government;

[ ] International organization per 26 CFR 1.6049-4;

[ ] Other _____.

(5) *Common parent*.

[ ] Offeror is not owned or controlled by a common parent;

[ ] Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan*. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations*. (1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that-

(i) It ___ is, ___ is not an inverted domestic corporation; and

(ii) It ___ is, ___ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.* (1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at *https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx*).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifer in the solicitation).

(1) The Offeror represents that it ___ has or ___ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: [ ].

Immediate owner legal name: [(Do not use a 'doing business as' name)].

Is the immediate owner owned or controlled by another entity: [ ] Yes or [ ] No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: [ ].

Highest-level owner legal name: [(Do not use a 'doing business as' name)].

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law*. (1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ___ is not ___ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ___ is not ___ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ___ is or ___ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark "Unknown").

Predecessor legal name: _____ (*Do not use a "doing business as" name*).

(s) (Reserved)

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) *Representation. (Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii))*. (i) The Offeror (itself or through its immediate owner or highest-level owner) ___ does, ___ does not publicly disclose greenhouse gas emissions, *i.e*., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ___ does, ___ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, *i.e*., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.,* agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it [ ] does, [ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

E2-8 52.216-1 Type of Contract. (APR 1984)

The Government contemplates award of a combination firm-fixed-price and indefinite-delivery/indefinite-quantity contract resulting from this solicitation. The indefinite-delivery/indefinite-quantity portion applies to the optional additional services in Section A.7 and sustaining maintenance items in Section A.8 with provisions to issue firm-fixed-price or labor-hour task orders resulting from this solicitation.

(End of provision)

E2-9 52.216-31 Time-and-Materials/Labor-Hour Proposal Requirements-Commercial Item Acquisition (FEB 2007)

Section E2-9 is applicable to the optional additional services line items only (included in Section A.7). While the Government generally contemplates issuing firm-fixed-price (FFP) task orders for optional additional services requirements, the Government reserves the right to issue time-and-material (T&M) or labor-hour (LH) task orders if the circumstances warrant such.

(a) The Government contemplates award of a Time-and-Materials or Labor-Hour type of contract [order] resulting from this solicitation.

(b) The Offeror must specify fixed hourly rates in its offer that include wages, overhead, general and administrative expenses, and profit. The Offeror must specify whether the fixed hourly rate for each labor category applies to labor performed by-

(1) The Offeror;
(2) Subcontractors; and/or
(3) Divisions, subsidiaries, or affiliates of the Offeror under a common control.

(End of provision)

E2-10 52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (JUN 2020)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means-

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at *www.irs.gov/w14*. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that-

(1) It [ ]is [ ]is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption (Offeror shall select one) from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to *https://www.irs.gov/help/tax-law-questions*.

(End of provision)

E2-11 52.233-2 Service of Protest. (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Derek Easter, Social Security Administration, 6401 Security Blvd; Baltimore, MD 21235.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

SECTION E3 - Agency Specific Provisions

E3-1 0001 Agency Specific Provisions

This solicitation includes one or more Social Security Administration acquisition provisions which are provided in full text.

E3-2 2352.233-1 Independent Review of Protest (MAR 2021)

Per Federal Acquisition Regulation 33.103(d)(4), interested parties may request an independent review of their protest as an appeal of a contracting officer decision on a protest. Such requests for an independent review must be clearly indicated as such and must be emailed to Dawn.Caracci@ssa.gov, Agency Protest Official and Director, Office of Acquisition Support, Office of Acquisition and Grants, Social Security Administration, no later than 5 calendar days from receipt of a contracting officer decision on a protest. The Agency Protest Official will decide the protest when submitted as an appeal to the contracting officer's decision.

(End of provision)

E3-3 Solicitation Questions and Inquiries

Inquiries concerning the solicitation document shall be submitted in writing using the FedConnect web portal. **Specifically, Offerors shall attach a completed version of Appendix D-26 when submitting any questions through FedConnect.**

ALL INQUIRIES MUST BE RECEIVED, IN WRITING, NO LATER THAN 1:00 PM Eastern Time on August 23, 2021.

The Government will make every attempt to answer questions which will not automatically result in the extension of the proposal due date. SSA cannot guarantee that the answers will be issued at least ten calendar days before the proposal due date and time. All questions and their respective answers will be made available to all prospective Offerors in the form of solicitation amendments, which will be posted via the FedConnect web portal.

E3-4 Site Visit

The Government strongly encourages all Offerors to inspect the site where services are to be performed to satisfy themselves regarding the general and local conditions that may affect the cost of contract performance. In no event shall failure to inspect the site constitute grounds for a claim after award.

We invite interested vendors to attend a site inspection Wednesday, August 18, 2021 at 11AM. The Government will schedule the appropriate number of site inspections based on number of interested attendees and capacity limits due to COVID-19.

If you are interested in attending, please send through Fedconnect web portal all requests to attend site visit no later than 1:00 PM Eastern Time on Monday, August 16, 2021 with the name and title of the company representatives attending (limit of two representatives per business

concern due to COVID-19 restrictions). In this email, each business concern may provide the name and title of one additional backup representative in the case that either of the two representatives is unable to attend due to COVID-19 restrictions.

For security reasons, individuals not on this list will not be granted access to the facility. All representatives must follow the latest version of the COVID-19 FAQs on the OAG site, available under the "Important Alerts" tab: https://www.ssa.gov/oag/.

This will be the only site visit scheduled. Photography or recording of any type is not permitted during the site visit. Additionally, please note that the Government will not provide a site visit attendance list or any presented materials from the site visit.